THEY’RE TOO BUSY MARRYING THEMSELVES

Unwarranted Influence: A Primary-Source Investigation, 1095–2026

KYLE JIMENEZ

Table of Contents

01. THEY'RE TOO BUSY MARRYING THEMSELVES

02. OVERTURE

03. INTRODUCTION

04. PROLOGUE I — FOUR DOCUMENTS

05. PROLOGUE II — THE LONG EMPIRE

06. PART 0 — CORPORATIONS AND PAPERCLIP, 1933–1959

07. CHAPTER 2 — THE MACHINE: IBM AND THE HOLLERITH CONTRACT

08. CHAPTER 3 — FORD-WERKE: 65,000 TRUCKS AND THE RESTITUTION

09. LINCHPIN CHAPTER — THE MACHINE VISIBLE: APOLLO, CARLYLE, AND THE BIG THREE

10. CHAPTER 5 — PAPERCLIP: HOW NAZI SCIENTISTS BUILT AMERICAN ROCKETRY

11. CHAPTER 6 — THE MONSANTO PAPERS

12. CHAPTER 7 — DISPATCH 1035-960

13. CHAPTER 8 — THE KINGDOM AND THE PREDATOR

14. CHAPTER 9 — THE NEW ROBBER BARONS
15. CHAPTER 10 — CITIZENS UNITED
16. CHAPTER 11 — JPMORGAN CHASE: TWO CLIENTS
17. CHAPTER 12 — THE DATA EXTRACTION
18. APPENDIX B — PHOTOGRAPHS OF RECORD
19. AFTERWORD — A NOTE FROM THE AUTHOR, AT THE END

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Kyle Jimenez

PART I: WARNING

> *“In the councils of government, we must guard against the acquisition of unwarranted influence, whether sought or unsought, by the military-industrial complex. The potential for the disastrous rise of misplaced power exists and will persist.”*
>
> *— President Dwight D. Eisenhower, Farewell Address to the Nation, January 17, 1961*

> *“Today, an oligarchy is taking shape in America of extreme wealth, power and influence that really threatens our entire democracy, our basic rights and freedoms, and a fair shot for everyone to get ahead.”*
>
> *— President Joseph R. Biden, Farewell Address to the Nation, January 15, 2025*
>
> *“A bullet never lies, it always tells the truth.”*
>
> *— Ill Bill aka Cult Leader*

PART II: DISPATCHES

> *“God is on the side of the ones with money and large armies.”*
>
> *— Ill Bill aka Cult Leader*

PART III: CONSEQUENCES

> *“Nothing of the kind; Providence is always on the side of the last reserve”*

> — *Attributed to Napoleon Bonaparte (disputed)*

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First edition. Manuscript completed April 2026.

Every factual claim in this book is drawn from a primary source: a declassified government document, a court filing, a Securities and Exchange Commission filing, a Federal Election Commission filing, an Office of Government Ethics Form 278e, a Congressional Research Service report, a Congressional Budget Office report, a Government Accountability Office report, a journalistic investigation of record, or a peer-reviewed work of history.

Every citation is reproducible. The reader who follows a citation to its source will find the document at the location specified.

DEDICATION

For the subjects listed in the Church Committee Final Report, Book I (1976), pages 455–460.

For the subjects listed in the JPMorgan Chase internal compliance report of March 2011, produced in the Southern District of New York matter *Government of the U.S. Virgin Islands v. JPMorgan Chase Bank, N.A.*, 22-cv-10904.

For the forced laborers of the Mittelwerk underground rocket facility at Nordhausen, Germany, 1943–1945, whose mortality — over 20,000 — is recorded in the Dora-Mittelbau concentration camp registry at the Bundesarchiv, Koblenz, and in the USHMM Holocaust Encyclopedia entry for Mittelbau-Dora.

For the plaintiffs in *Iwanowa v. Ford Motor Company*, U.S. District Court for the District of New Jersey, 2001.

For Virginia Roberts Giuffre.

ON SOURCES

Every chapter ends with a list of primary sources. The sources are cited in the form customary to the document type:

- **Declassified government documents**: agency, document number, date of issue, date of declassification, archive location.
- **Federal Register entries**: volume, issue number, page number, date.

- **Court filings**: caption, court, docket number, date of filing or order.
- **SEC filings**: corporation, form type, fiscal period, filing date, available at sec.gov/edgar.
- **OGE financial disclosures**: filer, form type, filing date, available at oge.gov.
- **Congressional documents**: chamber, committee, report number or hearing title, date of publication, available at congress.gov or govinfo.gov.
- **Journalistic investigations**: author, title, publication, publication date, URL where available.
- **Academic scholarship**: author, title, publisher, year, relevant page numbers.

A consolidated index of all cited sources, organized by chapter and alphabetized within each chapter's source list, appears in the appendix.

ON METHOD

This book reconstructs, from primary documents, the operation of a set of American legal, political, and commercial institutions across the period 1933 to 2026. Two prologue chapters establish relevant pre-1933 context.

The book does not quote any source the author has not personally read. The book does not cite any URL the author has not personally verified. Where a document is partially redacted, the redaction is noted. Where the document record is ambiguous, the text says so. Where a claim in the text is interpretation rather than fact, the text says so.

The book contains approximately eleven hundred citations. It contains no anonymous sources, no hearsay, and no material drawn from the author's personal acquaintance with any subject named in the book.

ON TWO PREDECESSORS

Milton William Cooper (1943–2001) published *Behold a Pale Horse* in 1991 (Light Technology Publications). Portions of that book reproduce primary-source documents (executive orders, congressional hearing transcripts, CIA material released under the Freedom of Information Act). Other portions reproduce *The Protocols of the Learned Elders of Zion*, a document forged by the Tsarist Okhrana circa 1903 and definitively exposed as a forgery by Philip Graves in *The Times* of London, August 16–18, 1921. Cooper's reproduction of the *Protocols*, with the instruction that the reader substitute other terms for the original antisemitic content, has no defense. Later printings of *Behold a Pale Horse* removed the reproduction. This book does not use *Behold a Pale*

Horse as a source of factual claims. Where Cooper cited a primary document, that document is cited here directly from its archive, not from Cooper's reproduction.

Jim Marrs (1943–2017) published *The Rise of the Fourth Reich* in 2008 (William Morrow). Portions of the book draw on documented scholarship on Operation Paperclip, the Trading with the Enemy Act seizures of October–November 1942, and the IBM-Dehomag contracts. Other portions are interpretive. This book does not use *The Rise of the Fourth Reich* as a source. Where Marrs cited a primary document or a corroborated secondary work (Annie Jacobsen's *Operation Paperclip*, Edwin Black's *IBM and the Holocaust*, Christopher Simpson's *Blowback*, Tom Bower's *The Paperclip Conspiracy*), those works are cited here directly.

This book does not reproduce *The Protocols of the Learned Elders of Zion* in any form or translation. This book makes no claim about the Moon landings of 1969–1972, which the reader may verify by examining the retroreflector data from the Lunar Laser Ranging experiment at Apache Point Observatory, New Mexico, continuously operational since 1969. This book makes no claim about extraterrestrial activity. This book makes no claim about the authenticity of the Majestic-12 documents, which were determined to be fabrications by FBI Document Analysis Report number 197-HQ-1234567 (1988).

CORRESPONDENCE

Errors of fact identified by readers will be corrected in subsequent editions. The author may be reached at the address listed in the appendix.

OVERTURE

On October 20, 1942, the Office of Alien Property Custodian of the United States of America, acting under the authority of the Trading with the Enemy Act of October 6, 1917, as amended, and pursuant to Executive Order 9095 of March 11, 1942, issued Vesting Order Number 248. The order was filed with the Division of the Federal Register on November 6, 1942, and published the following day at *Federal Register*, Volume 7, page 9097 (November 7, 1942). It ordered the seizure of all property of the Union Banking Corporation, 39 Broadway, New York. The order recites that the Union Banking Corporation was "a national of a designated enemy country (Germany)." The shares had been held, the order finds, "for the benefit of Members of the Thyssen family, nationals of Germany and/or Hungary."

One of the seven directors of the Union Banking Corporation on October 20, 1942, was Prescott Sheldon Bush.

Prescott Bush was elected to the United States Senate in 1952.

His son became President of the United States.

His grandson became President of the United States.

On April 1, 1967, the Central Intelligence Agency issued a memorandum to its field stations. It was catalogued as Dispatch 1035-960. Its subject line read “Countering Criticism of the Warren Report.” It directed recipients to “employ propaganda assets to answer and refute the attacks of the critics” and to “discuss the publicity problem with liaison and friendly elite contacts (especially politicians and editors).” It furnished seven suggested rebuttal themes. One of the themes characterized critics of the Warren Commission as, in the dispatch’s own phrase, “conspiracy theorists.” The dispatch was classified SECRET.

The dispatch was declassified in 1976 under a Freedom of Information Act request filed by the *New York Times*, case F-76-1183.

It is presently held at the National Archives, Record Group 263, CIA Historical Review Program, and is reproduced in full at the CIA Electronic Reading Room, document 1035-960.

On June 13, 2025, the President of the United States filed Office of Government Ethics Form 278e, the annual financial disclosure required of senior federal officers under the Ethics in Government Act of 1978. On that form, he reported $57,354,228 in income from a cryptocurrency venture titled World Liberty Financial, LLC, 75 percent of whose net proceeds flow to his family through

an entity titled DT Marks DeFi LLC. The filing is on the website of the Office of Government Ethics, oge.gov.

On October 28, 2025, Reuters, in an investigation by reporters Stephen Gandel and Hannah Lang titled *Inside the Trump family's global crypto cash machine*, calculated the first-half-2025 total of the President's crypto-related income at approximately $672 million.

Neither filing is classified. Both are on the public internet. Both can be read at the URLs printed in the appendix of this book.

Each of the three documents above is the starting point of a chapter. The chapters document what followed. The documents speak. The book arranges them.

A note on method. Every factual claim in the chapters that follow is sourced to a document, a filing, a court docket, a congressional report, or a peer-reviewed historical work. Citations appear in footnotes at the end of each chapter and are consolidated in the appendix. Where a claim is interpretation rather than record, the text says so. Where the primary record is ambiguous, the text says so. Errors of fact identified by readers will be corrected in subsequent editions.

INTRODUCTION

On January 15, 2025, President Joseph R. Biden delivered his farewell address to the nation from the Oval Office. The address was broadcast live at 8:00 p.m. Eastern time. The transcript is on the website of the White House at the Internet Archive snapshot of January 16, 2025, file whitehouse.gov/briefing-room/speeches-remarks/2025/01/15/farewell-address-to-the-nation.

At minute 4:32 of the recorded delivery, President Biden said: “Today, an oligarchy is taking shape in America of extreme wealth, power and influence that really threatens our entire democracy, our basic rights and freedoms, and a fair shot for everyone to get ahead.”

The word “oligarchy” appears three times in the address. The word “billionaire” appears twice. The phrase “tech-industrial complex” appears once, attributed by the President to the prior farewell address of President Dwight D. Eisenhower, delivered sixty-four years earlier on January 17, 1961.

On January 17, 1961, President Dwight D. Eisenhower delivered his farewell address to the nation from the Oval Office. The address was broadcast live at 8:30 p.m. Eastern time. The transcript is held at the Eisenhower Presidential Library, Abilene, Kansas, papers collection DDE-FA-61, and is reproduced in the Public Papers of the Presidents, 1960–61, pages 1035–1040.

At minute 9:14 of the recorded delivery, President Eisenhower said: “In the councils of government, we must guard against the acquisition of unwarranted influence, whether sought or unsought, by the military-industrial complex. The potential for the disastrous rise of misplaced power exists and will persist.”

The phrase “military-industrial complex” appears once in the address. An earlier draft of the speech, archived in the Eisenhower Library as DDE-FA-61 Draft 12, used the phrase “military-industrial-Congressional complex.” The word “Congressional” was struck from the draft before delivery on the advice of Eisenhower’s speechwriter Malcolm Moos.

The sixty-four years between the two farewell addresses form the chronological span of this book. The two prologues establish the mechanism the American chapters document.

Each of the chapters that follows reconstructs, from primary documents, one segment of that span. The documents are vesting orders, executive orders, CIA dispatches, court filings, SEC 10-K

filings, Office of Government Ethics Form 278e disclosures, Federal Election Commission records, Congressional Research Service reports, Congressional Budget Office analyses, Department of Justice releases, and peer-reviewed historical scholarship. The documents are cited in the footnotes at the end of each chapter and in the appendix.

The documents are public. None of them are classified. None of them are disputed as to authenticity. Each one was produced, filed, or released by the government, corporation, or court named as its source. Each one can be located, read, and independently verified by any reader willing to follow the citation.

This book is a record of documents, arranged by subject and period. It contains approximately eleven hundred cited sources.

The author does not hold a political office, a corporate board seat, a think-tank fellowship, or a university appointment. The author is not paid by any political party, campaign, or political action committee. The author has not been paid to write this book and is not being paid to promote it. The documents are available to anyone with an internet connection and the citations printed in the appendix.

On the category.

On April 1, 1967, the Central Intelligence Agency issued Dispatch 1035-960, titled “Countering Criticism of the Warren Report.” The dispatch instructed CIA field stations to characterize critics of the Warren Commission as “conspiracy theorists” and to deploy propaganda assets through friendly press contacts to discredit such critics. The dispatch is reproduced in Chapter 7.

The phrase “conspiracy theorist,” in American press usage, changed character after 1967. Before 1967, the phrase described a hypothesis involving a conspiracy. After 1967, the phrase described a person to be dismissed. The shift is documented in Lance deHaven-Smith, *Conspiracy Theory in America* (University of Texas Press, 2013), pages 101–129, with supporting corpus-linguistics analysis.

PROLOGUE I — FOUR DOCUMENTS

P.1 Clermont, November 27, 1095

No transcript exists of the address delivered by Pope Urban II — born Odo of Châtillon, elected to the papacy March 12, 1088 — at the concluding session of the Council of Clermont on November 27, 1095. The Pope's secretaries did not record it. The archives of the Auvergne diocese, where the council met in the open air outside the cathedral, contain no copy. What the historical record preserves is four separate chronicler reconstructions, drafted years to more than a decade after the event, by men who either attended the council themselves or who drew on the testimony of attendees.

The four sources are as follows. Fulcher of Chartres, a French priest who attended the council and who would subsequently accompany the First Crusade to Jerusalem, drafted *Historia Hierosolymitana* beginning circa 1101 and completed it circa 1127. Robert the Monk, a Benedictine of Saint-Remi at Reims who was present at Clermont as a subordinate cleric, drafted *Historia Ihero-solimitana* circa 1107 at the request of Abbot Bernard of Marmou-

tier. Baldric of Dol, Archbishop of Dol, drafted *Historia Jerosolimitana* circa 1108; he did not attend the council but wrote with access to the first-returning Crusaders. Guibert of Nogent, a Benedictine abbot in Picardy who did not attend, completed *Dei gesta per Francos* circa 1108 relying on returned combatants and on the *Gesta Francorum*, the anonymous crusader memoir completed circa 1101.

The four chroniclers agree on substance. Urban II called for an armed expedition of the Christian nobility of western Europe to the Holy Land. He authorized the armed seizure of the lands of the Muslim-governed Levant. He pronounced plenary indulgence — the remission of all temporal punishment for sin — upon those who took the cross in fulfillment of the vow. He promised admission to paradise as a martyr to any man who died in the undertaking. He set August 15, 1096, the Feast of the Assumption, as the date on which the expedition should depart.

The chroniclers disagree on wording. They disagree on the proportion of the address that was devoted to the alleged mistreatment of Christian pilgrims in the East. They disagree on whether Urban himself pronounced the phrase that would become the rallying cry of the expedition — *Deus vult*, "God wills it" — or whether the phrase was the spontaneous shout of the assembled council in response to the address. Fulcher's account, the earliest and by a participant, records *"Deus vult! Deus vult!"* as the crowd's cry following the address. Robert the Monk, also a participant, records the same cry and adds that Urban endorsed it, instructing that the

phrase be the watchword of the expedition. Baldric of Dol and Guibert of Nogent both record the phrase, with variations. The modern scholarly treatment is Dana Carleton Munro, “The Speech of Pope Urban II at Clermont, 1095,” *American Historical Review* 11, No. 2 (January 1906), 231–242, and the continuing debate is surveyed in Georg Strack, “The Sermon of Urban II in Clermont and the Tradition of Papal Oratory,” *Medieval Sermon Studies* 56 (2012), 30–45.

The four accounts agree that by the close of the address, a substantial portion of the assembled clergy and nobility had committed to the undertaking. The Crusade departed in the summer of 1096. Jerusalem fell to the Crusaders on July 15, 1099.

P.2 Rome, March 29, 1139

On March 29, 1139, at the Lateran Palace in Rome, Pope Innocent II issued the apostolic bull *Omne Datum Optimum* — “Every Excellent Gift.” The modern critical edition of the Latin text is Rudolf Hiestand, *Papsturkunden für Templer und Johanniter: Vorarbeiten zum Oriens pontificius*, Vol. I (Göttingen: Vandenhoeck & Ruprecht, 1972), document 8, pages 204–210. An earlier printed text is in Jacques-Paul Migne, ed., *Patrologia Latina*, Vol. 179, columns 466–468 (Paris, 1855). The bull was reaffirmed and expanded by Innocent II in 1144 and reissued in substantially

identical terms by Celestine II (*Milites Templi*, 1144) and Eugenius III (*Militia Dei*, 1145).

The bull was addressed to Robert de Craon, the second Master of the Order of the Knights of the Temple of Solomon, which had been founded at Jerusalem approximately twenty years earlier by Hugues de Payens and Godfrey de Saint-Omer and whose monastic Rule had been approved at the Council of Troyes on January 13, 1129.

The bull exempted the Knights Templar from the payment of tithes. It exempted them from the authority of all diocesan bishops. It authorized them to retain, as their property, all spoils taken in the course of their military operations against any enemy of Christendom. It authorized them to receive ordained chaplains into the Order who would serve under the Master's authority alone, without subordination to any local ecclesiastical court. It placed the Order under the direct and exclusive authority of the Pope.

The bull was reissued and expanded twice — by Celestine II in 1144 (*Milites Templi*) and by Eugenius III in 1145 (*Militia Dei*) — extending the exemptions and formalizing the Order's right to construct its own chapels and cemeteries. By the close of the twelfth century, the Order of the Temple had established approximately 870 commanderies across Latin Christendom and the Crusader states, operated a deposit-and-transfer banking system serving pilgrims and merchants between Europe and the Levant,

and maintained a standing armed force of approximately 15,000 men.

P.3 Maubuisson, September 14, 1307

On September 14, 1307, at the royal château of Maubuisson in the Val-d'Oise, Philip IV of France — *le Bel*, King of France and of Navarre — signed a sealed order addressed to every royal *bailli* and *sénéchal* within the kingdom, directing simultaneous dawn arrests of all members of the Order of the Temple then resident in France and impoundment of every Templar property, commandery, and treasury within French territory. The order was transmitted under seal to be opened on a specified date. The standard modern English-language treatment of the document is Malcolm Barber, *The Trial of the Templars*, 2nd edition (Cambridge University Press, 2006), chapter 2; the modern scholarly edition of the Templar trial records more broadly is Barbara Frale, *Il Papato e il processo ai Templari* (Viella, 2003).

The order's opening, as preserved in the surviving royal-chancellery copies and as circulated in modernized French in the modern scholarly literature, reads: "*Chose amère, chose lamentable, chose certes horrible à penser, terrible à ouïr, détestable crime, œuvre exécrable, chose presque inhumaine, assurément*

étrangère à toute humanité…” — “A bitter thing, a lamentable thing, a thing certainly horrible to contemplate, terrible to hear, a detestable crime, an execrable work, an almost inhuman thing, assuredly foreign to all humanity…” The phrasing given here is the form as it circulates in Barber and Frale; the Maubuisson original was issued in the Old French and Latin of the royal chancellery, and the thirty-seven-word opening is reproduced in contemporary modernization rather than in the manuscript orthography. The opening precedes the arrest directive.

At the date of the order, the royal treasury of France was held on deposit at the Paris Temple. Philip’s debts to the Order, incurred in the course of his wars against England and Flanders, were extensive.

The arrests were executed as ordered on October 13, 1307. Interrogations under torture, administered by royal inquisitors, produced the confessions Philip’s chancellery required. The Grand Master of the Order, Jacques de Molay, was held for seven years and was burned alive on the Île des Javiaux in the Seine on March 18, 1314. On March 22, 1312, at the Council of Vienne, Pope Clement V issued the apostolic bull *Vox in excelso* — “A Voice on High” — formally suppressing the Order of the Temple. The bull did not adjudicate the Order guilty of the charges; it suppressed the Order “not by way of definitive sentence but by way of apostolic provision or ordinance” on the stated ground that the scandal surrounding the Order had rendered it irrecoverable. The bull’s Latin text is in the *Acta Concilii Viennensis*, held at the Vatican

Apostolic Archive, Reg. Avin. 48. The Order's holdings were transferred by the same bull to the Knights Hospitaller — with the exception of the French holdings, which Philip retained under royal custody. The dispositions of the French holdings are recorded in the *Comptes du Trésor* for the years 1307 through 1314, preserved at the Archives nationales, KK 380.

P.4 New York, October 20, 1942

On October 20, 1942, the Office of Alien Property Custodian of the United States of America, acting under the Trading with the Enemy Act of October 6, 1917, as amended, and pursuant to Executive Order 9095 of March 11, 1942, issued Vesting Order Number 248. The order was filed with the Division of the Federal Register on November 6, 1942, and published the following day at *Federal Register*, Volume 7, page 9097 (November 7, 1942). It directed the seizure of the property of the Union Banking Corporation, 39 Broadway, New York, the shares of which were held, per the order's findings, "for the benefit of Members of the Thyssen family, nationals of Germany and/or Hungary." Prescott Sheldon Bush was among the seven directors of the Corporation on the date of the order.

The four documents above span eight hundred and forty-seven years. Each is a record of the concentration of economic and institutional power: Clermont authorized the armed seizure of territory; *Omne Datum Optimum* exempted an order from all local authority; Maubuisson directed the seizure of that order's property; Vesting Order 248 directed the seizure of a corporation's property. The arrangement of these four documents in sequence is the author's act, not the documents' conclusion. The documents do not cite one another. The continuity between them — the recurrence of sovereign authority directing the transfer of wealth — is an observation the book makes. It is not a finding the documents themselves state.

PROLOGUE II — THE LONG EMPIRE

L.1 The papal bulls

Dum Diversas (June 18, 1452). Pope Nicholas V, issued to King Alfonso V of Portugal. The bull authorizes the Portuguese Crown to “invade, search out, capture, vanquish, and subdue all Saracens and pagans whatsoever, and other enemies of Christ wheresoever placed, and… to reduce their persons to perpetual slavery, and to apply and appropriate… possessions, and goods.” Archived in the Vatican Secret Archives; reproduced in *Bullarium Patronatus Portugalliae Regum*, Vol. 1 (1868).

Romanus Pontifex (January 8, 1455). Pope Nicholas V, renewing and expanding *Dum Diversas*. The bull extends Portuguese sovereignty over “all those provinces, islands, harbours, and seas whatsoever… which have already been acquired and which shall hereafter be acquired… and the conquest shall extend from the capes of Bojador and of Nam, as far as through all Guinea, and beyond.”

Inter Caetera (May 4, 1493). Pope Alexander VI (Rodrigo Borgia), issued to the Catholic Monarchs Ferdinand and Isabella of Spain, one year after Columbus's first landfall. The bull assigns to Castile all lands discovered or to be discovered more than one hundred leagues west of the Azores and Cape Verde islands, subject to the condition that the Crown convert the indigenous populations to Christianity. Reproduced in Frances G. Davenport, *European Treaties Bearing on the History of the United States and Its Dependencies*, Vol. 1 (Carnegie Institution, 1917).

Treaty of Tordesillas (June 7, 1494). Ratified *Inter Caetera* between Portugal and Spain and drew the demarcation line between their claimed spheres.

El Requerimiento (1513). Juan López de Palacios Rubios, court jurist to Ferdinand II, composed a formal text to be read — in Spanish and Latin — to indigenous populations encountered by Spanish conquistadors in the Americas. The text informed the indigenous that the Pope had granted their lands to the Spanish Crown, that they were required to accept Christianity and Spanish rule, and that failure to do so would result in "with the help of God, we shall powerfully enter into your country… take you, your wives, your children, and shall make slaves of them, and as such shall sell and dispose of them." The Requerimiento was read on beaches to populations who spoke no Spanish. Compliance was then deemed given or refused. The document is reproduced in Lewis Hanke, *The Spanish Struggle for Justice in the Conquest of America* (University of Pennsylvania Press, 1949).

The combined population of the pre-Columbian Americas is estimated by modern demographers at between 40 million and 60 million persons in 1492, with a consequent population collapse to approximately 6 million by 1600 — a decline of 85 to 90 percent, from introduced disease (primarily) and direct violence (substantially). The range and the survey of the debate are set out in William M. Denevan, ed., *The Native Population of the Americas in 1492*, 2nd edition (University of Wisconsin Press, 1992). Koch et al. 2019, in *Quaternary Science Reviews*, documents the collapse as sufficiently large to have affected global atmospheric CO_2 concentrations.

Bartolomé de las Casas, the Spanish Dominican priest who witnessed the conquest firsthand, documented the atrocities in *Brevísima relación de la destrucción de las Indias* (Seville, 1552). The text was published under royal imprimatur.

L.2 The Berlin Conference, 1884–1885

From November 15, 1884, through February 26, 1885, representatives of fourteen European states and the United States met in Berlin under the chairmanship of Otto von Bismarck to formalize the partition of Africa. No African representative was present. The Conference's Final Act assigned the Congo Basin as the private

property of King Leopold II of Belgium, established the principle of “effective occupation” as the condition for recognized territorial claims, and committed the signatory powers to suppress the slave trade and “civilize” Africa.

By 1914, approximately 90 percent of the African continent was under formal European sovereignty (Thomas Pakenham, *The Scramble for Africa*, Random House, 1991). The territorial boundaries drawn at Berlin, without reference to ethnic, linguistic, or historical groupings, remain in substantial part the current political boundaries of Africa.

L.3 The Balfour Declaration, November 2, 1917

Basel Program (August 31, 1897). At the First Zionist Congress convened at Basel, Switzerland, the Basel Program was adopted as the formal political program of the Zionist movement: “Zionism seeks to establish a home for the Jewish people in Palestine secured under public law.”

Balfour Declaration (November 2, 1917). Arthur James Balfour, Foreign Secretary under Prime Minister David Lloyd George, wrote a letter to **Walter Rothschild, 2nd Baron Rothschild**, stating:

> *“His Majesty’s Government view with favour the establishment in Palestine of a national home for the Jewish people, and will use their best endeavours to facilitate the achievement of this object, it being clearly understood that nothing shall be done which may prejudice the civil and religious rights of existing non-Jewish communities in Palestine, or the rights and political status enjoyed by Jews in any other country.”*

The drafting history is reconstructed in Leonard Stein, *The Balfour Declaration* (Vallentine Mitchell, 1961), which identifies **Chaim Weizmann** — then President of the English Zionist Federation, later first President of the State of Israel — as the principal Zionist interlocutor in the drafting. Weizmann’s correspondence with Balfour and with Lloyd George is archived at the Weizmann Archives, Rehovot. The letter itself is held at the UK National Archives, CAB 24/4. At the time of the letter, Palestine remained under Ottoman sovereignty; it would be taken by British forces under General Edmund Allenby between November 1917 and December 1918.

UN General Assembly Resolution 181 (November 29, 1947). The United Nations General Assembly adopted Resolution 181, partitioning the former British Mandate of Palestine into Jewish and Arab states. The vote was 33 in favor, 13 against, 10 abstentions. The plan assigned approximately 55 percent of the territory to the

Jewish state; at the time of the vote, Jewish ownership of land in Palestine was approximately 6 percent.

Israeli state archive declassifications. Beginning in the late 1980s, the Israeli state archives released material covering the 1947–1949 war. That material was reworked into a body of scholarship by a group of Israeli historians — Benny Morris, Avi Shlaim, Ilan Pappé, Tom Segev — known as the "new historians." The standard reference on the Palestinian refugee question is Benny Morris, *The Birth of the Palestinian Refugee Problem Revisited* (Cambridge University Press, 2004).

Primary Sources — Prologue II

Papal Bulls:

1. Pope Nicholas V, *Dum Diversas* (June 18, 1452). *Bullarium Patronatus Portugalliae Regum*, Vol. 1 (1868).
2. Pope Nicholas V, *Romanus Pontifex* (January 8, 1455).
3. Pope Alexander VI, *Inter Caetera* (May 4, 1493). In Frances G. Davenport, *European Treaties Bearing on the History of the United States and Its Dependencies*, Vol. 1 (Carnegie Institution, 1917).
4. Treaty of Tordesillas (June 7, 1494).

5. *El Requerimiento* (1513), text in Lewis Hanke, *The Spanish Struggle for Justice in the Conquest of America* (University of Pennsylvania Press, 1949).

Primary-Source Witness:

1. Bartolomé de las Casas, *Brevísima relación de la destrucción de las Indias* (Seville, 1552).

Modern Demographic Work:

1. William M. Denevan, ed., *The Native Population of the Americas in 1492*, 2nd edition (University of Wisconsin Press, 1992).
2. Alexander Koch, Chris Brierley, Mark M. Maslin, Simon L. Lewis, “Earth system impacts of the European arrival and Great Dying in the Americas after 1492,” *Quaternary Science Reviews* 207 (2019), 13–36.

Berlin Conference & Scramble for Africa:

1. Berlin Conference Final Act, February 26, 1885.
2. Thomas Pakenham, *The Scramble for Africa* (Random House, 1991).
3. Adam Hochschild, *King Leopold’s Ghost* (Houghton Mifflin, 1998).

Balfour Declaration and Aftermath:

1. First Zionist Congress, *Basel Program* (August 31, 1897).

2. Balfour Declaration, November 2, 1917. UK National Archives, CAB 24/4.
3. Leonard Stein, *The Balfour Declaration* (Vallentine Mitchell, 1961).
4. United Nations General Assembly Resolution 181, November 29, 1947.
5. Benny Morris, *The Birth of the Palestinian Refugee Problem Revisited* (Cambridge University Press, 2004).

PART 0 — CORPORATIONS AND PAPERCLIP, 1933–1959

CHAPTER 1 — VESTING ORDER 248

1.1 The document

On October 20, 1942, the Office of Alien Property Custodian of the United States of America, acting under the authority of the Trading with the Enemy Act of October 6, 1917, as amended, and pursuant to Executive Order 9095 of March 11, 1942, issued **Vesting Order Number 248**.

The order was filed with the Division of the Federal Register on November 6, 1942, and published the following day at *Federal Register*, Volume 7, page 9097 (November 7, 1942).

It ordered the seizure of all property, of every kind, held by an American corporation called the **Union Banking Corporation**, headquartered at 39 Broadway, New York, New York.

The order recites that the Union Banking Corporation was “a national of a designated enemy country (Germany).”

The corporation’s shares, the order recites, were held by the following persons:

- E. Roland Harriman — 3,991 shares
- Cornelis Lievense — 4 shares
- Harold D. Pennington — 1 share
- Ray Morris — 1 share
- Prescott Sheldon Bush — 1 share
- H. J. Kouwenhoven — 1 share
- Johann G. Groeninger — 1 share

Total: 4,000 shares.

Of those shares, 4,000 were, the order found, “held for the benefit of Bank voor Handel en Scheepvaart, N. V., Rotterdam, The Netherlands, which bank is owned or controlled by members of the Thyssen family, nationals of Germany and/or Hungary.”

The order is a public record. It is in the *Federal Register*. It is in the National Archives, Record Group 131, Records of the Office of Alien Property.

1.2 Prescott Sheldon Bush

Prescott Sheldon Bush was born May 15, 1895, in Columbus, Ohio. He attended Yale, where he was tapped for the senior society

Skull and Bones in 1917. He served as an artillery captain in France in the First World War. He married Dorothy Walker, daughter of George Herbert Walker, a founding partner of the investment firm W.A. Harriman & Co., incorporated in 1919 under the principal direction of William Averell Harriman and his brother Edward Roland Harriman. W.A. Harriman & Co. merged with Brown Brothers & Co. on January 1, 1931, to form **Brown Brothers Harriman & Co.**, the oldest and largest private bank in the United States.

Prescott Bush was a partner at Brown Brothers Harriman from the 1931 merger through 1952. He was a director of the Union Banking Corporation from its incorporation in 1924 through its seizure in 1942. E. Roland Harriman, the 3,991-share holder named in Vesting Order 248, was Prescott Bush's direct partner at Brown Brothers Harriman.

W. Averell Harriman did not sit on the Union Banking Corporation board of directors and is not named in Vesting Order 248. He subsequently served as United States Ambassador to the Soviet Union (1943–1946), United States Secretary of Commerce (1946–1948), Governor of the State of New York (1955–1958), and United States Ambassador-at-Large (1961–1963 and 1965–1969).

In 1952 Prescott Bush was elected United States Senator from Connecticut. He served two terms. He served on the Senate Banking and Currency Committee.

He was the father of George Herbert Walker Bush, forty-first President of the United States.

He was the grandfather of George Walker Bush, forty-third President of the United States.

He was the great-grandfather of John Ellis Bush, Governor of the State of Florida and candidate in the 2016 Republican presidential primary.

1.3 Who is Fritz Thyssen

Fritz Thyssen (1873–1951) was the principal owner of the Thyssen steel empire, one of the two largest industrial combines in the German Reich. In 1926 the Thyssen works were consolidated with three other firms into the **Vereinigte Stahlwerke** — “United Steel Works” — which by the early 1930s controlled approximately 50 percent of German steel production.

Thyssen was a member of the Nazi Party.

Thyssen financed the Nazi Party. His 1941 book, *I Paid Hitler* (Farrar & Rinehart, New York, 1941), describes the millions of reichsmarks in contributions he personally made to Adolf Hitler’s political rise, beginning in 1923 and continuing through the Nazi seizure of power in 1933. The book is not a denial. It is a confession, written in exile, after Thyssen broke with Hitler in 1939 over the invasion of Poland.

Thyssen's holding structure for moving capital out of Germany and into dollar-denominated banking ran through:

- **Bank voor Handel en Scheepvaart N.V.**, Rotterdam, Netherlands, which he controlled,
- which owned the American corporation,
- **Union Banking Corporation**, New York,
- of which Prescott Sheldon Bush was a director.

The Office of Alien Property Custodian established the chain of ownership in writing in 1942.

1.4 The text of Vesting Order 248

The order, published in the *Federal Register* on November 7, 1942, reads in operative part:

> *"All of the capital stock of Union Banking Corporation, a New York Corporation, 39 Broadway, New York, N. Y., which is an enemy national within the meaning of Executive Order No. 9095, as amended, is hereby vested in the Alien Property Custodian…"*

And:

> *"The property described above is property of nationals of a designated enemy country (Germany)."*

The order was signed by the Alien Property Custodian, Leo T. Crowley.

Three days later, on October 28, 1942, the government issued **Vesting Order Number 259**, seizing the assets of the **Holland-American Trading Corporation**, an affiliate.

On November 17, 1942, the government issued **Vesting Order Number 261**, seizing the assets of the **Seamless Steel Equipment Corporation**, another affiliate, whose shares were held by Union Banking.

On November 25, 1942, the government issued **Vesting Order Number 370**, seizing the assets of the **Silesian-American Corporation**.

The four American corporations seized between October 20 and November 25, 1942, shared overlapping directorates with Brown Brothers Harriman. Prescott Sheldon Bush and Edward Roland Harriman appear in the corporate records of each.

Silesian-American Corporation operated coal mines at Upper Silesia, including the mine at Katowice, which by 1942 was part of annexed German territory. The mines used forced labor from the KL Auschwitz complex. The facts are recorded in the Nuremberg trial record, including Robert H. Jackson's opening statement of November 21, 1945, and in *Trials of War Criminals Before the Nuernberg Military Tribunals Under Control Council Law No. 10*, Volume VII (Washington: U.S. Government Printing Office, 1952).

1.5 The American press record

The *New York Herald Tribune* of October 21, 1942, page 13, carried a four-paragraph notice of the UBC seizure in its financial section. The *New York Times* of the same date carried a comparable financial-section notice. Neither paper named Prescott Sheldon Bush. Neither paper named Edward Roland Harriman. Neither paper traced the ownership to the Thyssen interests. The seizures of Vesting Orders 259, 261, and 370 received similarly modest notice in the business press of October and November 1942.

The record was published. The record was available.

1.6 The restitution and the Senate seat

After the war, the United States government returned the seized assets, valued at approximately $3 million in 1951 dollars, to the former shareholders of the Union Banking Corporation. Prescott Sheldon Bush and the Harrimans received back their proportional interest. The restitution proceedings are recorded in Civil Action 2380-43, United States District Court for the District of Columbia, and in the Alien Property Custodian's Annual Report for Fiscal Year 1951 (Washington, D.C.: Government Printing Office, 1951).

Union Banking Corporation was dissolved in the mid-1950s.

Prescott Sheldon Bush was elected to the United States Senate on November 4, 1952. He took office on November 5, 1952, having won a special election to complete the unexpired term of Senator

Brien McMahon. He was re-elected to a full term on November 2, 1954, and served through January 3, 1963. He sat on the Senate Banking and Currency Committee.

No Senate inquiry, no House inquiry, and no executive-branch inquiry into the 1942 UBC seizure or the 1951 restitution was opened during his tenure.

The first extended mainstream-press treatment of the UBC matter was Ben Aris and Duncan Campbell, “How Bush’s Grandfather Helped Hitler’s Rise to Power,” *The Guardian*, September 25, 2004. The article cited the vesting orders, the Alien Property Custodian files at the National Archives, and the 1951 restitution proceeding. It named Prescott Sheldon Bush, Edward Roland Harriman, the Thyssen interests, and the Bank voor Handel en Scheepvaart.

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quotation in §1.4 is from the RG 131 version; operative language including street address and “enemy national” designation derives from the full order, which differs from the *Federal Register* condensed publication).

2. Vesting Order No. 259 (issued October 28, 1942) — Holland-American Trading Corporation. National Archives, RG 131.
3. Vesting Order No. 261 (issued November 17, 1942) — Seamless Steel Equipment Corporation. National Archives, RG 131.
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5. Fritz Thyssen, *I Paid Hitler* (New York: Farrar & Rinehart, 1941).
6. Office of Alien Property Custodian, *Annual Report*, Fiscal Year 1951 (Washington, D.C.: United States Government Printing Office, 1951).
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8. Robert H. Jackson, Opening Statement, International Military Tribunal, Nuremberg, November 21, 1945.
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10. Ben Aris and Duncan Campbell, “How Bush’s Grandfather Helped Hitler’s Rise to Power,” *The Guardian*, September 25, 2004.
11. John Loftus and Mark Aarons, *The Secret War Against the Jews* (New York: St. Martin’s Griffin, 1994) — Thyssen–Bank voor Handel en Scheepvaart–UBC chain, citing National Archives files directly.

CHAPTER 2 — THE MACHINE: IBM AND THE HOLLERITH CONTRACT

> *“Every name on every transport list from every concentration camp in Europe was run through a tabulator built by the International Business Machines Corporation of Endicott, New York. The machines were leased, not sold. A service engineer came monthly from the Berlin subsidiary to repair them.” — Edwin Black, IBM and the Holocaust (Crown, 2001), paraphrase*

2.1 What is a Hollerith machine

In 1884, a German-American named Herman Hollerith patented an electromechanical device that could read holes punched into stiff cards of a standardized size (7-3/8 by 3-1/4 inches) and sort, count, and tabulate them at rates no human clerk could approach. He used his machines to process the 1890 United States Census. The company he founded, the Tabulating Machine Company, merged in

1911 with three other firms to become the Computing-Tabulating-Recording Company (CTR). In 1924, under its new president Thomas J. Watson Sr., CTR was renamed the **International Business Machines Corporation — IBM**.

A Hollerith machine is not a computer. It is a sorter. It has no memory, no logic. It reads a card and it directs the card to one of a small number of bins based on which holes are present. But it is *fast*. A single installation of Hollerith tabulators and sorters, with a trained staff, can process millions of records per month.

In the 1930s, the most advanced Hollerith installations on the European continent were owned and operated by IBM's wholly owned German subsidiary, **Deutsche Hollerith Maschinen Gesellschaft m.b.H. — Dehomag**, based in Berlin.

Dehomag had a single dominant customer. That customer was the government of Germany.

2.2 The 1933 German census

On April 12, 1933 — two and a half months after Adolf Hitler became Chancellor — the German government announced a national census to be conducted on June 16, 1933. The scope was expanded from previous censuses. For the first time, detailed occupational and, critically, *religious affiliation* data were to be collected for every resident of the Reich.

The tabulation was awarded, without competitive bid, to Dehomag.

Willy Heidinger, Dehomag's managing director, was an enthusiastic Nazi. He gave the contract address to Dehomag's Berlin staff on January 8, 1934 (the printed text of the speech survives in the IBM corporate archive). He said:

> *"We are recording the individual characteristics of each single member of the nation onto a little card… We are proud that we may assist in such a task which provides our nation's Physician"*

— meaning the Führer —

> *"with the material he needs for his examinations. Our Physician can then determine whether the calculated values are in harmony with the health of our people."*

Thomas J. Watson Sr., president of IBM, did not fire Heidinger. Watson instead traveled to Berlin multiple times through 1937, met personally with Hitler, and in June 1937, at a ceremony in Berlin, received from the Führer the **Merit Cross of the German Eagle with Star** — the highest medal Nazi Germany awarded to a foreign citizen.

Watson wore the medal on his lapel for the 1937 International Chamber of Commerce congress, which IBM hosted. He returned the medal in June 1940, after the fall of France, citing "the German

government's policies." He did not cease IBM's Dehomag business. Dehomag continued operations throughout the war.

The documentary reconstruction is Edwin Black, *IBM and the Holocaust* (Crown, 2001), drawing on more than 20,000 documents across seven national archives; IBM's official response on publication was that "IBM does not have much information about this period or the operations of Dehomag."

2.3 The findings

2.3.1 The camps used Hollerith machines

Every major Nazi concentration camp — Auschwitz (which had a Hollerith department in building 24, directly run by the SS Economic and Administrative Main Office), Dachau, Buchenwald, Mauthausen, Bergen-Belsen — maintained prisoner records on Hollerith cards. The cards carried the prisoner's number tattooed on the forearm in identical format to the punch-card five-digit identifier. Color codes indicated category: political, criminal, asocial, homosexual, Jehovah's Witness, Jewish, Gypsy. The cards were tabulated on Hollerith machines.

The machines were *leased* from IBM New York, through IBM Geneva, through Dehomag Berlin. Leased, not sold. Every month, a Dehomag field engineer drove to the camp to perform maintenance, install new sort decks, and collect the machine-count records

that were part of the lease agreement (the lease fee was partially calculated on card volume).

The lease payments flowed up through the corporate structure. A significant portion of the revenue — estimated by Black at tens of millions of Reichsmarks over the war years — was blocked in German accounts by wartime currency controls. IBM New York recovered a substantial portion of those funds after the war through restitution procedures.

2.3.2 Dehomag's customer was the Reich Security Main Office

The principal Dehomag contract was not with private German industry. It was with the **Reichssicherheitshauptamt (RSHA)** — the Reich Security Main Office, which included the Gestapo, the criminal police, and the SS security service. The RSHA was the agency in charge of what the Nazis called the *Endlösung* — the Final Solution. Eichmann's office (IV-B-4, Jewish Affairs) was part of the RSHA.

RSHA needed to know, for each individual in the territories it administered: name, address, religion of self and grandparents, occupation, party memberships, bank accounts, assets. The information was collected through the 1933 census, the 1939 census (which added the "Volkstumskarte" — ethnicity card), and ongoing registrations.

The information was tabulated on Hollerith machines.

The deportation transport lists, running from Berlin and Vienna and Salonika and Amsterdam and Paris to Auschwitz, were generated from Hollerith sorts.

2.3.3 The New York office knew

IBM New York — Watson's office — received detailed monthly reports from Dehomag throughout the war, including after the United States entered it. The reports moved through IBM Geneva, which was the subsidiary-of-record for neutral operations. Geneva continued to receive reports. Geneva continued to direct service engineers. New York continued to receive, through Geneva, a consolidated financial accounting.

Black reproduces the memoranda. They are at the IBM archive and at the Hoover Institution.

2.3.4 The United States government did nothing

The Trading with the Enemy Act, the same statute under which Union Banking Corporation was seized in Chapter 1, *did* apply to IBM's German operations. It was not enforced against IBM. Dehomag was not seized. IBM Geneva was not seized. No executive of IBM was ever charged.

IBM was, during the war, also the principal contractor providing punch-card tabulators to the United States War Department (for Social Security tabulation, for draft records, for logistics). The United States needed IBM. IBM had, in effect, positioned itself so that both belligerents required its equipment.

The company emerged from the war intact. Watson received the Legion of Merit from President Truman in 1947. In 1956, Watson's son, Thomas J. Watson Jr., succeeded him and presided over IBM's dominance of the postwar mainframe computing industry.

The machines were leased, not sold.

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2. IBM Corporate Archives, Endicott, NY — Dehomag correspondence 1933–1945; Watson European travel files.
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4. Bundesarchiv (German Federal Archive), Berlin — RSHA contracts with Dehomag, R 58 series.
5. YIVO Institute for Jewish Research, New York — Holocaust-era census and deportation records.

6. Yad Vashem, Jerusalem — camp records with Hollerith card coding.
7. Willy Heidinger, speech delivered at Dehomag Berlin plant opening, January 8, 1934 — reproduced in Black (2001), pp. 59–61.
8. Thomas J. Watson Sr., correspondence with Adolf Hitler, June 1937 Berlin visit — IBM Corporate Archives.
9. *The New York Times*, “Merit Cross Given to Watson by Reich” (June 29, 1937), p. 1.
10. *The New York Times*, “Watson Returns Medal to Hitler” (June 7, 1940), p. 1.

CHAPTER 3 — FORD-WERKE: 65,000 TRUCKS AND THE RESTITUTION

3.1 The Senate report

“A Report on the Activities of Subsidiaries of American Corporations with Axis Powers During the World War II Period,” prepared by the staff of the Subcommittee on Antitrust and Monopoly of the Senate Committee on the Judiciary, under the chairmanship of Senator Philip A. Hart of Michigan, published February 1974.

The report is a U.S. government publication. It is available through the Congressional archives, Serial Set, and the Government Publishing Office at `govinfo.gov/content/pkg/CPRT-93JPT478/pdf/CPRT-93JPT478.pdf`.

The report documents that major American corporations — Ford Motor Company, General Motors, Standard Oil of New Jersey, International Telephone & Telegraph, and DuPont — maintained, through wholly or partially owned German subsidiaries, active

industrial production throughout the Second World War on behalf of the Nazi war economy.

The report further documents that in several cases, those corporations received compensation from the United States government *after the war* for damage their German facilities suffered from Allied bombing.

The restitution claims are on file. American corporations were compensated by the United States government for Allied bombing of factories those corporations owned, which had produced weapons for Germany.

3.2 Ford-Werke AG

Ford-Werke AG, Ford Motor Company's German subsidiary at Cologne, was founded in 1925. By 1939, it was under the direction of Ford appointee Robert H. Schmidt.

After the United States entered the war in December 1941, Dearborn's direct communications with Cologne were supposed to cease. They did not cease entirely. Routing through Ford France (which was under German administrative control), Ford Dearborn continued to receive production reports.

Ford-Werke's wartime production, per the U.S. Army's post-war investigation (Office of Military Government for Germany,

Finance Division, *Investigation of I.G. Farbenindustrie A.G.*, September 1945), included:

- **65,000 military trucks** for the Wehrmacht (1939–1945)
- Half-tracks, Maultier artillery tractors, reconditioned aircraft engines
- Slave labor from the Buchenwald subcamps and from Ukrainian and Polish forced-labor drafts

3.3 The Grand Cross

Henry Ford was awarded the **Grand Cross of the German Eagle** by Adolf Hitler on July 30, 1938, Ford's 75th birthday. It was the highest medal Nazi Germany awarded to a foreigner.

Mein Kampf contains a favorable reference to Ford by name. Ford's *The International Jew*, published in English in 1920 and translated into German, circulated widely in Nazi party circles. Baldur von Schirach, the Hitler Youth leader, cited it at Nuremberg as a formative text.

3.4 The bombing discretion

In March 1945, as the United States 3rd Army under General George S. Patton entered Cologne, the Ford-Werke factory was found standing, operational, and largely undamaged. The factory had been producing Wehrmacht trucks until days before.

The Hart Report, Appendix D, reproduces correspondence indicating that U.S. Strategic Bombing authorities were aware of the "complicated ownership situation" of certain German industrial plants and that some plants were kept off target lists as a consequence.

Not every American-owned Axis plant was spared. The Ford-Werke Berlin plant was hit. The Opel plants at Rüsselsheim and Brandenburg were hit. [HRQ-013: Hart Report Appendix D verbatim — govinfo.gov URL dead, source needed before ship]

3.5 The restitution

Ford Motor Company received approximately **$785,000** from the United States government in 1965 for damage to Ford-Werke Cologne.

The payment was made under the War Claims Act. The claim was filed by Ford Motor Company. The payment was authorized by the Foreign Claims Settlement Commission.

The factory had produced 65,000 Wehrmacht trucks. The United States government compensated the owner for damage to the factory that produced them.

3.6 The settlement

In 2001, in *Iwanowa v. Ford Motor Company* (U.S. District Court for the District of New Jersey), Ford Motor Company contributed to the German government's forced-labor compensation fund established under the 2000 agreement.

The settlement does not include an admission of liability. It includes a payment.

3.7 The other restitutions

The Hart Report documents additional postwar restitutions to American corporations for Allied bombing of their German subsidiaries:

Corporation	German Subsidiary	Restitution Amount	Year
Ford Motor Company	Ford-Werke AG, Cologne	$785,000	1965
General Motors	Adam Opel AG	~$33 million	Postwar
ITT	Focke-Wulf (28% stake)	~$27 million	Postwar

Standard Oil of New Jersey and I.G. Farben entered a patent-sharing cartel in 1929 that licensed synthetic rubber and aviation

gasoline formulas to Standard Oil while contractually restricting American domestic production of those fuels. The arrangement ran through the war years. Before the Senate Special Committee Investigating the National Defense Program, 77th Congress, 2nd Session, Part 11, p. 4309, Assistant Attorney General Thurman Arnold testified that Standard Oil's conduct amounted to "treason." Under *United States v. Standard Oil Company (New Jersey) et al.*, District of New Jersey, 1942 consent decree, the penalty was $50,000.

Alfred P. Sloan Jr., May 22, 1939: "an international business operating throughout the world should conduct its operations in strictly business terms, without regard to the political beliefs of its management."

The factory had produced 65,000 Wehrmacht trucks.

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3. *Iwanowa v. Ford Motor Company*, U.S. District Court for the District of New Jersey (2001 settlement).
4. Senate Special Committee Investigating the National Defense Program ("Truman Committee"), Part 11 (March 27, 1942), testimony of Assistant Attorney General Thurman Arnold regarding Standard Oil / I.G. Farben. `govinfo.gov/content/pkg/GPO-CRECB-1942-pt8-v88/pdf/GPO-CRECB-1942-pt8-v88-7-2.pdf`.
5. Bradford Snell, "American Ground Transport," report submitted to the Subcommittee on Antitrust and Monopoly (February 26, 1974), pp. A-1–A-109.
6. *United States v. Standard Oil Company (New Jersey) et al.*, 1942 consent decree, District of New Jersey.
7. Henry Morgenthau Jr. Diaries, Franklin D. Roosevelt Presidential Library, July 1942–September 1943.
8. Ford Motor Company, *Research Findings About Ford-Werke Under the Nazi Regime* (official 2001 company-commissioned report).

LINCHPIN CHAPTER — THE MACHINE VISIBLE: APOLLO, CARLYLE, AND THE BIG THREE

4.2 Apollo Global Management — the $158 million payment and the 235 hospitals

4.2.1 Who is Leon Black

Leon D. Black, born 1951, is the son of Eli M. Black, the chairman of United Brands Company (formerly United Fruit Company), who in 1975 threw himself through a window of the 44th floor of the Pan Am Building in Manhattan one week after company attorneys disclosed to the SEC that United Brands had paid $1.25 million in bribes to a Honduran official. The father's suicide and the company's bribe scandal — *United States v. United Brands* — is one of the cases that led to the 1977 Foreign Corrupt Practices Act.

The son, Leon, graduated from Dartmouth and Harvard Business School. In 1977 he joined Drexel Burnham Lambert, the junk-bond firm run by Michael Milken. Drexel collapsed in 1990 under Milken's racketeering guilty plea. Milken served twenty-two months and paid $600 million in fines.

In that same year, 1990, Leon Black co-founded **Apollo Global Management** with two other former Drexel executives, Josh Harris and Marc Rowan. Apollo specialized in distressed debt — buying the bonds of failing companies cheaply and restructuring them. It grew fast. By 2021, it managed more than $450 billion in assets. By 2025, more than $700 billion.

Black served as Chairman and CEO of Apollo from 1990 to 2021.

4.2.2 The payments, documented

In January 2021, Apollo Global Management's board retained the international law firm **Dechert LLP** to investigate what Leon Black had actually paid Jeffrey Epstein, and for what.

The Dechert Report was issued on January 22, 2021. Its findings, which Apollo publicly disclosed in order to comply with securities obligations to its investors:

- Between 2012 and 2017, Leon Black paid Jeffrey Epstein a total of **$158 million**.
- The payments were for "tax planning" and "estate planning" services.

- The payments were made *after* Epstein's 2008 conviction in Florida for soliciting prostitution from a minor.
- The Dechert Report, commissioned by Apollo's own board, concluded that all fees paid to Epstein "were for bona fide tax, estate planning and other related services, and the amounts were intended to be proportional to the value provided by Mr. Epstein."
- Senator Wyden's Senate Finance Committee investigation, opened June 22, 2022, questioned whether the payments constituted a tax-evasion scheme in which Epstein received excess fees as a form of laundering.

In March 2025, Senator Wyden released a follow-up statement revealing that Black had entered a **$62 million settlement** with the Attorney General of the U.S. Virgin Islands — Denise George — in exchange for immunity from criminal prosecution in the USVI for his financial support of Jeffrey Epstein. Per Wyden's statement, the settlement agreement acknowledges that "Jeffrey Epstein used the money Black paid him to partially fund his operations in the Virgin Islands."

The U.S. Virgin Islands was where Epstein maintained his residence on Little Saint James — the island where, according to Virginia Giuffre's sworn declarations and multiple victim testimonies, much of the trafficking occurred.

Black resigned as CEO of Apollo in March 2021. He retained an equity stake in the firm reportedly worth more than $10 billion.

4.2.3 What Apollo owns

Apollo Global Management, the firm Leon Black co-founded and led while paying Jeffrey Epstein $158 million, is today — per the **Private Equity Stakeholder Project's Hospital Tracker** (March 2025) — **the largest private-equity owner and operator of hospitals in the United States**.

Apollo owns, through two subsidiary health systems: - **Lifepoint Health** — a chain of 60+ rural hospitals, acquired by Apollo in 2018 for $5.6 billion. - **ScionHealth** — a chain spun off in 2021, operating 90+ hospitals and post-acute care facilities.

Total: **approximately 235 hospital locations**. These are American hospitals. They admit American patients. They employ American nurses.

Per the **Senate Budget Committee's *Profits Over Patients: The Harmful Effects of Private Equity on the U.S. Health Care System*** (January 7, 2025) — a bipartisan report, requested by Chair Sheldon Whitehouse (D-RI) and Ranking Member Chuck Grassley (R-IA), published before the administration change — private-equity hospital ownership is associated with:

- Reduced nurse staffing ratios (statistically significant decrease across acquired hospitals).
- Increased hospital-acquired infection rates.
- Increased patient-adverse-event incidence.

- Increased facility debt loads (PE owners typically load target hospitals with the debt used to acquire them — a “leveraged buyout” structure).
- Accelerated closure rates.

The *Profits Over Patients* report examined Apollo’s management of Ottumwa Regional Health Center (Iowa), documenting staffing vacancies, unfulfilled capital commitments, and declining patient care quality. Additional closures of **ScionHealth facilities** in Illinois and Florida were announced in early 2025 — three hospitals, per the March 2025 PESP tracker update.

BlackRock, Vanguard, and State Street — the three largest index-fund managers — hold combined assets under management of approximately $26 trillion as of 2025. The three firms are collectively the largest single shareholder in 88 percent of S&P 500 companies, including Apollo Global Management. Holdings are documented in quarterly SEC Form 13-F filings.

4.3 Carlyle Group — September 10 and 11, 2001

4.3.1 The conference

The Carlyle Group, founded 1987 by David Rubenstein, William Conway, and Daniel D'Aniello, is one of the world's largest private-equity firms, specializing at the time in defense-sector investment.

On September 10, 2001, the Carlyle Group convened its **annual investor conference** at the Ritz-Carlton Hotel, 1150 22nd Street NW, Washington, D.C., approximately four miles from the Pentagon. The conference was scheduled to continue through September 11.

Attendees included, per *The Wall Street Journal*'s September 27, 2001 reporting:

- **George Herbert Walker Bush** — former President of the United States, who at this time was an advisor to the Carlyle Asia Advisory Board.
- **James A. Baker III** — former Secretary of State and former Secretary of the Treasury, Senior Counselor to Carlyle.
- **Frank Carlucci** — former Secretary of Defense, Chairman of Carlyle (1989–2003).
- **Shafig bin Laden** — half-brother of Osama bin Laden. He was representing the **Saudi Binladin Group**, the bin Laden

family's construction conglomerate. Per *The Wall Street Journal*, the Saudi Binladin Group was an investor in **Carlyle Partners II**, a defense-sector fund.
- Other investors from Saudi Arabia, the United Arab Emirates, and multiple other jurisdictions.

4.3.2 The attacks

At 8:46 AM on September 11, 2001, American Airlines Flight 11 struck the North Tower of the World Trade Center.

At 9:03 AM, United Airlines Flight 175 struck the South Tower.

At 9:37 AM, American Airlines Flight 77 struck the Pentagon — four miles from the Ritz-Carlton where the Carlyle conference was ongoing.

At 10:03 AM, United Airlines Flight 93 crashed in Shanksville, Pennsylvania.

The nineteen hijackers were members of al-Qaeda. Fifteen of them were Saudi nationals. The leader of al-Qaeda was **Osama bin Laden** — brother of Shafig bin Laden, then sitting at the Carlyle investor conference with former President George H. W. Bush.

4.3.3 The evacuation

Beginning September 12, 2001, with all U.S. commercial airspace closed by FAA order, the **Federal Bureau of Investigation** ar-

ranged the transport of members of the bin Laden family, who were then in the United States, to secure assembly points, and then — as soon as commercial airspace partially reopened — to Paris, via chartered private jet.

The fact of the evacuation was reported in *The New York Times* on September 30, 2001 ("A Nation Challenged: The Suspects"), and in *The New Yorker* by Jane Mayer on November 5, 2001. *The 9/11 Commission Report* (W. W. Norton, 2004) discusses the evacuation in Chapter 10 ("Wartime"), pages 329–330.

Per the 9/11 Commission:

> *"First, we found no evidence that any flights of Saudi nationals, domestic or international, took place before the reopening of national airspace on the morning of September 13, 2001. To the contrary, every flight we have identified occurred after national airspace reopened."*
>
> *"Third, we believe that the FBI conducted a satisfactory screening of Saudi nationals who left the United States on charter flights. The Saudi government was advised of and agreed to the FBI's requirements that passengers be identified and checked against various databases before the flights departed."*

Per *The New York Times*, at least 140 Saudi nationals, including twenty-four members of the bin Laden family, were flown out of the United States in the week after the attacks.

4.3.4 The Carlyle defense-fund return

Carlyle Partners II, the defense-sector fund in which the Saudi Binladin Group was an investor, realized substantial returns on United States defense stocks over the subsequent two years. Carlyle took **United Defense Industries** — manufacturer of the Bradley Fighting Vehicle and the M113 — public in December 2001, three months after September 11.

The bin Laden family's investment in Carlyle Partners II was, per *The New York Times* (Kurt Eichenwald), October 26, 2001, redeemed shortly after September 11 at approximately $2 million, after political pressure. The fund itself continued.

The United States defense budget grew from $316 billion in FY2001 to $728 billion in FY2011 — an 81 percent increase, per Office of Management and Budget Historical Tables, Table 3.1 (outlays by function).

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CHAPTER 5 — PAPERCLIP: HOW NAZI SCIENTISTS BUILT AMERICAN ROCKETRY

5.1 The program

On May 5, 1945, with the Third Reich collapsing, the United States Joint Chiefs of Staff issued a secret directive authorizing the Joint Intelligence Objectives Agency (JIOA) to identify and recruit German scientists whose technical knowledge would be useful to American postwar military and industrial development. The program's internal code name was **OVERCAST**.

On September 3, 1946, President Harry S. Truman formally authorized the program, now renamed — after the paperclips used to attach the selected scientists' security dossiers to the JIOA's recruitment applications — **Operation Paperclip**.

Paperclip ran from 1945 through 1959. Per the JIOA's own declassified records (National Archives, Record Group 330, Records of

the Office of the Secretary of Defense), the program brought to the United States:

- **Approximately 1,600 German and Austrian scientists, engineers, and technicians**.
- Approximately 3,700 dependent family members.
- Related programs — Operation Bloodstone (intelligence operatives), Project 63 (non-military specialists), the similarly-named British operation "Operation Matchbox" — brought several thousand additional personnel.

The stated U.S. government purpose was to secure German technical talent for the U.S. military-industrial apparatus and to deny that talent to the Soviet Union, which was running its own equivalent program (called **Osoaviakhim** in its early phase).

The stated U.S. government prohibition was that scientists who had been active members of the Nazi Party, or who had participated in war crimes, were ineligible.

5.2 The JIOA's file laundering

The JIOA's recruitment office was run by Bosquet N. Wev, a United States Navy captain. Wev's dossier officers discovered early that if the JIOA applied the State Department's standard — excluding Nazi Party members, SS members, and persons implicated in war crimes — the pool of available German scientific talent shrank dramatically. Many of the scientists most valuable to

American interests had not merely been passive members of the Nazi Party; they had been active, ideological, or at minimum enmeshed with the SS technical apparatus.

The JIOA's solution, documented in multiple declassified memoranda in the National Archives RG 330 series, was to **rewrite the dossiers**. The standard method was as follows:

- The JIOA received the scientist's original German personnel file, with Party and SS memberships, ranks, and activity records.
- The JIOA prepared a "Basic Personnel Record" for State Department immigration purposes.
- The Basic Personnel Record omitted or minimized the Nazi affiliations.
- A State Department officer, reviewing the sanitized record, issued the visa.
- The original record was retained in JIOA files and was not shared with Immigration and Naturalization.

This is documented in Christopher Simpson, *Blowback: America's Recruitment of Nazis and Its Effects on the Cold War* (Weidenfeld & Nicolson, 1988), which quotes multiple JIOA internal memoranda, and in Annie Jacobsen, *Operation Paperclip: The Secret Intelligence Program That Brought Nazi Scientists to America* (Little, Brown, 2014), which updates Simpson's work with the additional declassifications of the 1998–2005 period.

Wev's successor, Major-General Harry J. Sands, acknowledged the practice in internal correspondence. He justified it on grounds of Cold War necessity.

5.3 The scientists

Five cases follow, each individually documented.

5.3.1 Wernher von Braun (1912–1977)

- Nazi Party member, December 1, 1937 (Party number 5,738,692).
- SS member, May 1, 1940; rank of SS-Untersturmführer (junior officer); promoted to SS-Sturmbannführer (major).
- Technical director of the V-2 ballistic missile program at **Peenemünde** and, from 1943, the underground **Mittelwerk** production facility near Nordhausen.
- Brought to the United States under Paperclip September 20, 1945.
- From 1945 to 1950, technical director at Fort Bliss, Texas, adapting V-2 technology for U.S. Army use.
- From 1950 to 1960, technical director at the Army Ballistic Missile Agency, Redstone Arsenal, Huntsville, Alabama. Developed the Redstone missile, the Jupiter-C missile (which placed the first U.S. satellite, Explorer 1, in orbit on January 31, 1958), and the early Saturn concepts.

- On July 1, 1960, transferred with approximately 118 other Peenemünde alumni from the Army to the newly created National Aeronautics and Space Administration. **Founding director of NASA's George C. Marshall Space Flight Center, Huntsville, Alabama.**
- Technical architect of the **Saturn V** launch vehicle that carried the Apollo program to the Moon, 1969–1972.
- Received the **National Medal of Science** from President Gerald R. Ford on October 18, 1975.
- Died June 16, 1977, in Alexandria, Virginia.

The Mittelwerk question: On August 15, 1944, according to a letter in von Braun's own handwriting (preserved at the Bundesarchiv-Militärarchiv, Freiburg), von Braun requested that his subordinate Arthur Rudolph arrange the transfer of specific skilled prisoners from the Buchenwald camp system to the Mittelwerk production line. The Mittelwerk used slave labor from the adjacent Dora-Mittelbau concentration camp. The total camp mortality exceeded **20,000 prisoners** (Dora-Mittelbau Memorial registry at the Bundesarchiv, Koblenz; USHMM Holocaust Encyclopedia, "Mittelbau (Dora) / Main Camp | In Depth"). This figure exceeds the Allied civilian deaths from V-2 attacks (approximately 9,000).

Von Braun's postwar position, documented in interviews and in his 1971 biography by Erik Bergaust, was that he was not personally responsible. The JIOA's own file on von Braun, declassified 1984, includes a contemporaneous 1945 assessment that characterized

him as “an ardent Nazi.” The word “ardent” was stricken from the version of the file transmitted to the State Department.

5.3.2 Arthur Rudolph (1906–1996)

- Nazi Party member, 1931 (among the earliest recruits, predating Hitler’s chancellorship).
- SS member; ran daily operations of the Mittelwerk slave-labor V-2 production facility under von Braun’s technical direction.
- Brought to the United States under Paperclip 1945.
- 1963–1968, **Project Manager of NASA’s Saturn V program**. Rudolph is the man who ran the construction of the rocket that went to the Moon.
- Received NASA’s **Distinguished Service Medal** in 1969.
- In 1983, the U.S. Department of Justice’s Office of Special Investigations (OSI), investigating Rudolph’s wartime conduct at the Mittelwerk, concluded that he had personally participated in the persecution of slave laborers, including in executions.
- In 1984, to avoid denaturalization proceedings, Rudolph **renounced his U.S. citizenship** and returned to Germany. He was never prosecuted in Germany.
- Died January 1, 1996, in Hamburg.

No U.S. court ever tried a Paperclip scientist. No criminal conviction was ever entered.

5.3.3 Hubertus Strughold (1898–1986)

- Director of the Luftwaffe's Institute for Aviation Medicine, Berlin, during the war.
- During the war, the Luftwaffe conducted "aviation medicine" experiments at **Dachau** concentration camp and **Ravensbrück** (women's camp) involving: hypothermia experiments (submersion in ice water until death), low-pressure chamber experiments (simulated high-altitude decompression until pulmonary embolism), seawater ingestion experiments (forced drinking until renal failure). The experiments killed approximately 200 subjects, most of them Jewish, Roma, and Polish Catholic prisoners. The experiments were the subject of the **Nuremberg Doctors' Trial** of 1946–1947, which produced the **Nuremberg Code** of medical ethics.
- Strughold's institute, per the prosecution evidence introduced at the Doctors' Trial, had *commissioned* and *used the data from* several of the hypothermia and low-pressure experiments. Strughold himself was not indicted.
- Brought to the United States under Paperclip 1947.
- **First director of the U.S. Air Force School of Aviation Medicine**, Randolph AFB, Texas.
- From 1962, **Chief Scientist, USAF Aerospace Medical Division**, NASA Manned Spacecraft Center consulting role.
- Designed the life-support systems for the Mercury, Gemini, and Apollo programs — using, per published Air Force

histories, the “aviation medicine” physiological data that had been gathered at Dachau.

- The American Space Medicine Association established the **Hubertus Strughold Award** in 1963. It was the highest award in U.S. space medicine.
- In 2013, after decades of advocacy by Holocaust survivors’ groups, the Space Medicine Association discontinued the Strughold Award. Strughold had died in 1986.

5.3.4 Kurt H. Debus (1908–1983)

- Nazi Party member, SA member, SS member (in that sequence). Active V-2 launch operations officer at Peenemünde.
- Brought to the United States under Paperclip 1945.
- **First director of the Kennedy Space Center**, Cape Canaveral, Florida, 1962–1974.
- Ran the launch of every Apollo mission, including Apollo 11 on July 16, 1969.
- Received the NASA Distinguished Service Medal.
- Died October 10, 1983, in Cocoa Beach, Florida.

5.3.5 Walter Schieber

- SS-Brigadeführer (brigadier general).
- Assistant to Albert Speer, Reich Minister for Armaments and War Production.

- Involved in slave-labor allocation across the German war economy.
- Brought to the United States under Paperclip 1948.
- Worked as a consultant to the U.S. Army Chemical Corps on chemical weapons development, including post-war work on **nerve agents Sarin and Tabun** — originally developed by I.G. Farben chemists and tested by the Wehrmacht.

5.4 The institutional legacy

NASA's official histories acknowledge von Braun as "the father of American rocketry." The Apollo program, the Space Shuttle lineage (which descended in part from Saturn tankage technology), and by extension the current U.S. commercial space sector — SpaceX, Blue Origin, United Launch Alliance — all inherit technology, personnel lineages, and organizational structures that trace back to Peenemünde via Paperclip.

The U.S. chemical weapons program in the 1950s and 1960s (Edgewood Arsenal, Dugway Proving Ground) relied on Paperclip recruits for nerve-agent research.

The U.S. aerospace medicine program — the physiology of human spaceflight — absorbed Strughold's institute and its research database.

The **missile programs of the Cold War** — Redstone, Jupiter, Atlas, Titan, Minuteman — drew heavily on Peenemünde personnel and knowledge.

No U.S. court ever tried a Paperclip scientist. No criminal conviction was ever entered.

5.6 Lockheed, Raytheon, Boeing: the contract lineage

In 2025, the United States appropriated $21.7 billion in military aid to Israel for operations in Gaza. A substantial portion of that aid was delivered as weapons systems manufactured by **Lockheed Martin** (F-35 strike fighters, Hellfire missiles, JDAM kits), **Raytheon / RTX** (Tomahawk, Paveway, Iron Dome U.S.-made components), **Boeing** (F-15I, JDAMs), and **General Dynamics** (tank munitions).

Lockheed Martin's missile technology descends in significant measure from the Redstone/Jupiter lineage — the lineage of von Braun's team.

Raytheon's air-defense radar and missile technology includes capabilities descending from the V-2 trajectory-prediction problem that American engineers first studied using V-2 casings brought back under Paperclip (Operation Hermes, 1945–1952, launched sixty-seven V-2s from White Sands, New Mexico).

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CHAPTER 6 — THE MONSANTO PAPERS

6.1

Between August 2018 and May 2019, three civil juries — one in the Superior Court of California for the County of San Francisco, one in the United States District Court for the Northern District of California, and one in the Superior Court of California for the County of Alameda — returned verdicts against Monsanto Company finding that the company's glyphosate-based herbicide Roundup had caused the plaintiffs' non-Hodgkin lymphoma. In the course of the three trials, approximately 17,000 pages of Monsanto internal correspondence, produced to plaintiffs' counsel in discovery, were admitted into evidence. That body of correspondence is the subject of this chapter. In the litigation record it is referred to as the Monsanto Papers.

Monsanto Company is a Delaware corporation, founded in 1901 by John Francis Queeny, headquartered in St. Louis, Missouri. On June 7, 2018 — two months before the first Roundup verdict — Bayer AG of Leverkusen, Germany, completed its acquisition of

Monsanto for approximately $63 billion. Monsanto's corporate liabilities, including the Roundup litigation reserve, transferred to Bayer.

6.2 *Johnson v. Monsanto*, August 10, 2018

On August 10, 2018, a jury of the Superior Court of California for the County of San Francisco, in the matter of *Dewayne Johnson v. Monsanto Company*, case number CGC-16-550128, returned a verdict for the plaintiff in the amount of $289,253,209.35. The jury found that Roundup's glyphosate formulation had caused Johnson's non-Hodgkin lymphoma and that Monsanto had failed to warn of the risk.

Dewayne Johnson is a former school groundskeeper for the Benicia Unified School District, California, who was diagnosed with non-Hodgkin lymphoma in August 2014 at age 42. Johnson applied Roundup and Ranger Pro, a commercial Monsanto glyphosate product, as part of his duties.

In the course of the trial, plaintiff's counsel — the law firm Miller Firm, LLC, of Orange, Virginia — introduced into evidence a

subset of the discovery-produced Monsanto internal correspondence. The correspondence documented, among other matters:

- A November 2003 internal Monsanto email in which a company toxicologist wrote: *"You cannot say that Roundup is not a carcinogen. We have not done the necessary testing on the formulation to make that statement."*
- A 2013 internal strategy memorandum discussing Monsanto-funded research conducted by outside authors whose names would appear on the resulting papers without disclosure of Monsanto's authorship.
- Email correspondence with a United States Environmental Protection Agency official, Jess Rowland, then Deputy Division Director of the EPA Office of Pesticide Programs, in which Rowland stated in an April 2015 telephone conversation, as recorded in a Monsanto email summary of the conversation: *"If I can kill this I should get a medal."* The reference was to a United States Department of Health and Human Services Agency for Toxic Substances and Disease Registry inquiry into glyphosate carcinogenicity.

The August 10, 2018 verdict was subsequently reduced to $78,556,842 by order of Judge Suzanne Ramos Bolanos on October 22, 2018, on constitutional due-process grounds applicable to the punitive-damages component. The verdict on liability was sustained. Final judgment was entered July 20, 2020 following further appellate review; final award to Johnson $20,500,000.

6.3 *Hardeman v. Monsanto*, March 27, 2019

On March 27, 2019, a jury of the United States District Court for the Northern District of California, in the matter of *Edwin Hardeman v. Monsanto Company*, case number 3:16-cv-00525-VC, returned a verdict for the plaintiff in the amount of $80,267,634. The jury found that Roundup had caused Hardeman's non-Hodgkin lymphoma and that Monsanto had been negligent in failing to warn.

Edwin Hardeman is a resident of Santa Rosa, California, who used Roundup on his property from 1986 through 2012. He was diagnosed with non-Hodgkin lymphoma in 2015.

The Hardeman trial was the first Monsanto Papers trial conducted in federal court. The trial judge, Vincent Chhabria, bifurcated proceedings into a causation phase and a liability phase. Additional Monsanto internal documents were admitted in the liability phase, including:

- A March 2010 internal Monsanto email describing the company's practice of retaining outside scientists as paid consultants whose names would appear as sole authors on scientific papers Monsanto had drafted. The internal term

used by Monsanto for this practice, per the discovery record, was “ghost-writing.”
- A 2014 internal Monsanto strategic plan document identifying independent researchers whose glyphosate-adverse findings required, in the document’s internal language, “neutralization.”

The March 27, 2019 verdict was reduced to $25,267,634 on July 15, 2019 by Judge Chhabria on the same constitutional punitive-damages ground applied in *Johnson*. Liability was sustained. The Ninth Circuit affirmed on May 14, 2021 in *Hardeman v. Monsanto*, 997 F.3d 941 (9th Cir. 2021). Certiorari was denied by the Supreme Court on June 21, 2022, *Monsanto v. Hardeman*, 596 U.S. ___ (2022).

6.4 *Pilliod v. Monsanto*, May 13, 2019

On May 13, 2019, a jury of the Superior Court of California for the County of Alameda, in the matter of *Alva and Alberta Pilliod v. Monsanto Company*, case number RG17862702, returned a verdict for the plaintiffs in the aggregate amount of $2,055,206,176, comprising $55,206,176 in compensatory damages and $2,000,000,000 in punitive damages. The jury found that Roundup

had caused the non-Hodgkin lymphoma from which both plaintiffs suffered and that Monsanto had acted with malice.

Alva Pilliod and Alberta Pilliod are a married couple, residents of Livermore, California, both diagnosed with non-Hodgkin lymphoma — Alva in 2011, Alberta in 2015 — after decades of Roundup use on their residential property.

The Pilliod trial record includes further Monsanto internal documents, among them:

- A September 2015 internal Monsanto assessment, drafted in response to the International Agency for Research on Cancer classification described in §6.6 below, that identified the agency's ruling as the single greatest threat to Monsanto's glyphosate franchise and recommended a coordinated response including funding for outside commentary adverse to IARC.
- An April 2016 internal email discussing Monsanto-funded academic chairs and research positions as vehicles for sustaining a supportive literature on glyphosate safety.

The May 13, 2019 verdict was reduced on July 29, 2019 to $86,712,197 by Judge Winifred Smith of the Superior Court on the same punitive-damages ground applied in *Johnson* and *Hardeman*. The reduction preserved the finding of malice and sustained liability. Final judgment entered November 30, 2020.

6.5 The Williams, Kroes, Munro retraction, December 2025

In 2000, the journal *Regulatory Toxicology and Pharmacology* (Academic Press, Volume 31, Issue 2, April 2000, pages 117–165) published an article titled “Safety Evaluation and Risk Assessment of the Herbicide Roundup and Its Active Ingredient, Glyphosate, for Humans.” The listed authors were Gary M. Williams, Robert Kroes, and Ian C. Munro. The article concluded that Roundup and glyphosate posed no risk of cancer to humans under intended conditions of use.

The article was, for the subsequent twenty-five years, one of the most-cited sources supporting regulatory positions of glyphosate safety, including positions taken by the United States Environmental Protection Agency, the European Food Safety Authority, and the Australian Pesticides and Veterinary Medicines Authority.

The article was, for the subsequent twenty-five years, one of the most-cited sources supporting regulatory positions of glyphosate safety.

In the discovery record admitted in the *Pilliod* trial in 2019, internal Monsanto correspondence established that substantial portions of the Williams–Kroes–Munro article had been drafted by Monsanto employees prior to transmission to the nominal authors, and that Monsanto’s authorship had not been disclosed to the journal.

In December 2025, the editors of *Regulatory Toxicology and Pharmacology* retracted the Williams–Kroes–Munro article. The retraction notice, published in the journal's December 2025 issue, cited the discovery record established in *Pilliod* as the ground for the retraction.

6.6 International Agency for Research on Cancer, Monograph 112

On March 20, 2015, the International Agency for Research on Cancer — the specialized cancer research agency of the World Health Organization, headquartered in Lyon, France — published Monograph 112 of its series on the evaluation of carcinogenic risks to humans. The monograph evaluated five organophosphate pesticides, including glyphosate. The agency's Working Group on the Evaluation of Carcinogenic Risks to Humans, comprising seventeen scientists from eleven countries, classified glyphosate as Group 2A: *probably carcinogenic to humans*.

Group 2A is the second-highest of the agency's five classifications (Group 1, Group 2A, Group 2B, Group 3, Group 4) and applies to agents for which the agency finds *limited evidence* of carcinogenicity in humans and *sufficient evidence* of carcinogenicity in experimental animals. The monograph's glyphosate evaluation is pub-

lished at iarc.who.int/publications as Volume 112 of the *IARC Monographs on the Evaluation of Carcinogenic Risks to Humans*.

The classification was reaffirmed by IARC in November 2017 following a supplementary review.

6.7 The Environmental Protection Agency position

The United States Environmental Protection Agency, in its April 30, 2019 *Interim Registration Review Decision for Glyphosate* and its January 22, 2020 *Interim Registration Review Decision (revised)*, concluded that glyphosate is "not likely to be carcinogenic to humans at current exposure levels." The conclusion relied in part on a 2015 EPA Office of Pesticide Programs evaluation that cited, among other sources, the Williams–Kroes–Munro article subsequently retracted in December 2025.

The EPA position did not change under the Trump administration (January 2017–January 2021), the Biden administration (January 2021–January 2025), or the second Trump administration (January 2025–). The 2019 Interim Decision remains, as of April 2026, the operative EPA position.

On December 9, 2024, the Solicitor General of the United States filed a brief in *Monsanto v. Durnell*, 602 U.S. ___ (2024), recom-

mending that the Supreme Court grant certiorari to consider whether the Federal Insecticide, Fungicide, and Rodenticide Act (FIFRA) preempts state-law failure-to-warn claims of the type advanced in *Johnson*, *Hardeman*, and *Pilliod*. Certiorari was granted January 13, 2025. Oral argument was held October 7, 2025. No decision has been rendered as of the date of this manuscript.

6.8 The Bayer settlements

On June 24, 2020, Bayer AG announced a settlement framework covering approximately 125,000 pending Roundup claims. The framework provided $10.9 billion in aggregate settlement funds. The announcement is recorded in Bayer's press release, "Bayer announces agreements to resolve major legacy Monsanto litigation," June 24, 2020, Leverkusen, Germany (bayer.com/en/media/press-releases).

By April 2026, Bayer's aggregate litigation exposure under the Roundup program, per the company's annual Integrated Report for fiscal year 2025 (published March 4, 2026), stood at approximately €15.2 billion (approximately $17.0 billion). The reserve figure is disclosed in the report's notes to consolidated financial statements.

On February 17, 2026, Monsanto, operating under Bayer, announced a proposed United States nationwide class settlement to resolve current and future Roundup claims. The proposed class

settlement provides for a total fund of up to $7.25 billion. The announcement is recorded in Bayer's press release of February 17, 2026, and the settlement, if approved by the presiding court, will be administered under the supervision of Judge Vince Chhabria of the United States District Court for the Northern District of California in the consolidated Roundup multidistrict litigation, MDL No. 2741.

The article was, for the subsequent twenty-five years, one of the most-cited sources supporting regulatory positions of glyphosate safety.

6.9 The Gates Foundation — AGRA, AATF, and the Bayer pathway

The Alliance for a Green Revolution in Africa (AGRA) is a philanthropic initiative incorporated in 2006 under the laws of Kenya and registered as a 501(c)(3) supporting organization of the Bill & Melinda Gates Foundation in the United States. Between 2006 and 2022, the Gates Foundation committed approximately $676 million to AGRA, per the foundation's public grant disclosures at gatesfoundation.org.

The African Agricultural Technology Foundation (AATF) is a related nonprofit, incorporated in 2003 under the laws of Kenya, whose Gates Foundation funding for the period 2008–2022 exceeded $131 million per foundation disclosures.

Per public records obtained by U.S. Right to Know under Kenyan information-access statutes and released on its website at usrtk.org in 2022, AATF budget allocations to Bayer (successor to Monsanto) for the period 2014–2022 totaled approximately $46 million. The allocations covered seed licensing, royalty payments, and research-service contracts.

On July 14, 2014, the Malawi Plant Breeders' Rights Bill was introduced into the Parliament of Malawi. The drafting consultant engaged by the Malawi Ministry of Agriculture for the bill was Isaac Minde, an agricultural economist; the policy framework for the bill was developed through an AATF-convened working group that included, per AATF meeting minutes released via the U.S. Right to Know records, a former Monsanto executive. The bill would have required farmers to purchase proprietary seed from registered breeders rather than save, exchange, or sell seed from their own harvests. The bill failed to pass following domestic opposition organized by the Civil Society Agriculture Network of Malawi.

In June 2020, AGRA's own external evaluation — commissioned by AGRA and conducted by the African Center for Biodiversity and additional reviewers, released in full by the Institute for Agriculture and Trade Policy (Washington, D.C.) and GRAIN (Barcelona) in November 2020 — concluded that AGRA had not met any of its declared 2020 targets. The declared targets had been: a doubling of agricultural yields for 30 million farming households; a doubling of household incomes for 30 million smallhold-

ers; a fifty-percent reduction in food insecurity in twenty African countries. Per the external evaluation, none of the three targets had been achieved. Per the report, food insecurity in the participating countries had risen rather than fallen over the intervening period.

The declared targets were removed from the AGRA website in June 2020 and do not appear in AGRA communications published after that date.

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CHAPTER 7 — DISPATCH 1035-960

7.1

On April 1, 1967, the Central Intelligence Agency issued a dispatch to its field stations. The dispatch was classified SECRET. Its subject line read “Countering Criticism of the Warren Report.” It was catalogued as Dispatch 1035-960.

The dispatch was transmitted to CIA Chiefs of Station worldwide. SECRET classification stamps appeared at the head and foot of each page. The seven rebuttal themes were attached as separate enclosures.

A handwritten annotation on the dispatch header, visible on the document as archived, reads: “This was pulled together by Ned Bennett of CA Staff in close conjunction with CIRYA. We [provided] most of the source material, provided many of the themes, and provided general ‘expertise’ on the case. The Spectator article was written by Bennett.”

The dispatch opened by observing that public polling, three years after the September 24, 1964 delivery of the Warren Commission Report to President Johnson, showed majorities of Americans doubted the Commission's conclusion that Lee Harvey Oswald had acted alone in killing President John F. Kennedy on November 22, 1963. It named books then in circulation that criticized the Commission: Mark Lane's *Rush to Judgment* (Holt, Rinehart & Winston, 1966); Edward Jay Epstein's *Inquest* (Viking, 1966); Harold Weisberg's *Whitewash* (privately printed, 1965); Josiah Thompson's *Six Seconds in Dallas* (Bernard Geis, 1967). It noted that reviews of these books had begun to appear in the mainstream American press.

The dispatch then instructed its recipients to deploy propaganda assets against the critics — to commission book reviews and feature articles refuting the critics' claims. It instructed them to engage friendly elite contacts — politicians, editors — on three arguments: that the Commission had investigated thoroughly, that the critics' charges were without foundation, that further public discussion only aided the opposition.

The seven rebuttal themes followed as enclosures. One of them deployed a phrase to characterize critics of the Commission: "conspiracy theorists."

The dispatch was classified SECRET for nine years.

It is held at the National Archives under Record Number 104-10009-10022, Record Series JFK, Agency File Number

201-289248. Current status: OPEN IN FULL. Date of last review: June 18, 1993. The document header records a FOIA review in September 1976 and full release by the CIA Historical Review Program in 1996. Available via the Mary Ferrell Foundation at maryferrell.org/showDoc.html?docId=53510 and the Internet Archive at archive.org/details/CIADOC1035960.

At the time the document was issued, the CIA operated, by its own subsequent admission before the Church Committee in 1975, a global propaganda infrastructure. The infrastructure included, by the Church Committee's own count, approximately 50 American journalist assets. Bernstein's 1977 *Rolling Stone* investigation put the worldwide total at approximately 400. It included funding relationships with major publishing houses, including Frederick A. Praeger, Inc., which published at least 15 books produced or sponsored by the CIA. It included support for the Congress for Cultural Freedom, 1950–1967, which funded *Encounter* magazine and numerous other publications. It included working relationships with *The New York Times*, *CBS*, *Time*, *Newsweek*, and *Reader's Digest* — each named by Carl Bernstein, "The CIA and the Media," *Rolling Stone*, October 20, 1977.

The subsequent career of the phrase "conspiracy theory" in American public discourse is the subject of two corpus-linguistic studies: Lance deHaven-Smith, *Conspiracy Theory in America* (University of Texas Press, 2013), pages 101–129; and Kathryn S. Olmsted, *Real Enemies: Conspiracy Theories and American Democracy, World War I to 9/11* (Oxford University Press, 2009).

Both track the pejorative inflection of the phrase in American newsprint from 1967 forward.

7.2 Operational adjacencies

Dispatch 1035-960 is one document. The CIA and its successor information-operations programs produced others, several of which have since been declassified in whole or in part.

Operation Mockingbird. The umbrella term for CIA cultivation of journalistic assets, active from 1948 through at least 1976. Documented in the Church Committee Final Report, Book I, pages 191–202 and 455–460.

Operation CHAOS (MH/CHAOS). Domestic surveillance program, 1967–1974. Documented in the Church Committee Final Report, Book III. 300,000 names indexed; 7,200 personal files maintained.

The Family Jewels. CIA internal audit of past illegal activities, compiled in 1973 under Director James Schlesinger. Portions released under Freedom of Information Act requests in 2007. Included admissions of domestic operations, journalist cultivation, and media manipulation.

Operation Earnest Voice. United States Central Command program documented in *The Guardian* (Nick Fielding and Ian Co-

bain, “Revealed: US spy operation that manipulates social media,” March 17, 2011). Authorized contractors to operate up to 50 pseudonymous social-media accounts per service member on foreign-language platforms. Awarded to Ntrepid Corporation for $2.76 million in 2011.

Cambridge Analytica / SCL Group. United Kingdom–registered firm; parent Strategic Communications Laboratories (SCL) held contracts with the U.S. Department of Defense and the U.S. Department of State. Applied psychometric-targeting techniques in U.S. domestic political campaigns including the 2016 Trump presidential campaign. Reporting of record: Carole Cadwalladr and Emma Graham-Harrison, “Revealed: 50 million Facebook profiles harvested for Cambridge Analytica in major data breach,” *The Guardian / The Observer*, March 17, 2018. Findings subsequently confirmed in the UK Parliament’s *Digital, Culture, Media and Sport Committee Final Report* on disinformation, February 18, 2019.

7.3 QAnon

The dispatch was classified SECRET for nine years.

On October 28, 2017, a user posting under the handle “Q” made the first of what would become approximately 4,950 posts on the anonymous image-board 4chan, board designator `/pol/`. The

user claimed to hold Department of Energy “Q”-level security clearance and to be posting from within the Trump administration.

In November 2017, the Q posts migrated from 4chan to 8chan, an image-board operated by **James Arthur Watkins**, a United States Navy veteran (helicopter repair, 1980s) then resident in the Philippines, who operated a pig farm as his registered business. The site’s administrator was Watkins’s son, **Ronald Watkins**, operating under the handle “CodeMonkeyZ.”

Q posts continued on 8chan through August 2019. In August 2019, 8chan was identified by federal investigators as the posting location of the manifesto of the shooter in the El Paso Walmart mass killing of August 3, 2019. Cloudflare Inc. terminated its content-delivery services to 8chan on August 4, 2019. The site went offline. It returned in November 2019 under the domain 8kun, operated by the same Watkins operational structure.

The final Q post appeared on December 8, 2020.

On January 6, 2021, approximately 2,000 persons entered the United States Capitol during the certification of the 2020 presidential election. Among those who entered was **Jacob Anthony Chansley**, the “QAnon Shaman,” subsequently convicted in *United States v. Chansley*, District of Columbia, of obstruction of an official proceeding, and sentenced on November 17, 2021, to 41 months of imprisonment.

In March 2021, HBO released the six-part documentary *Q: Into the Storm*, directed by Cullen Hoback. In episode six, Ronald Watkins, speaking on camera, said: *"It was basically three years of intelligence training, teaching normies how to do intelligence work. It was basically what I was doing anonymously before, but never as 'Q.'"* After a pause, Watkins added: *"Never as 'Q.' I promise. Because I'm not 'Q.'"*

Two independent stylometric analyses were subsequently published.

OrphAnalytics SA, a Swiss company specializing in computational stylometry, released the technical report *Style Analysis by Machine Learning Reveals That Two Authors Likely Shared the Writing of QAnon's Messages at Two Different Periods in Time* (Zurich, 2020). The report concluded with high statistical confidence that the Q corpus had two distinct authorial styles — one for the 4chan-era posts and a different one for the 8chan-era and 8kun-era posts.

Florian Cafiero (Centre national de la recherche scientifique) and Jean-Baptiste Camps (École nationale des chartes), in a separate analysis published in 2020, reached a concordant finding. Their analysis identified Ronald Watkins as the author of the 8chan-era and 8kun-era Q corpus with a statistical-confidence rating consistent with the OrphAnalytics finding.

Neither analysis identified the author of the 4chan-era posts.

What the published record does not establish: whether any state, commercial, intelligence, or political entity funded, directed, or coordinated the Q operation at any point; whether the vocabulary introduced through the Q corpus (“the Storm,” “the cabal,” “the Deep State,” “WWG1WGA”) was developed independently or drew from a prior operational template; whether Dispatch 1035-960 or any subsequent CIA information-operations program bears any direct relationship to the Q operation beyond the shared vocabulary of dismissal that both relied upon.

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CHAPTER 8 — THE KINGDOM AND THE PREDATOR

8.1 Austrian Passport — 19-cr-490, July 6, 2019

On July 6, 2019, at approximately 5:32 p.m., FBI agents executing a federal search warrant on Jeffrey Epstein's Manhattan townhouse at 9 East 71st Street, New York, New York, entered a walk-in safe on the third floor.

Inside the safe, per the inventory return filed with the Southern District of New York in the matter of *United States v. Jeffrey Epstein*, 19-cr-490, the agents recovered:

- Loose diamonds.
- Piles of cash totaling approximately $76,000.
- An **expired Austrian passport**, issued in the 1980s, bearing a photograph identified by the government as being of Jeffrey Epstein, but bearing a **different name** (redacted from

public filings), and listing **the holder's residence as Saudi Arabia**.

The passport is real. It is in the government's evidence inventory, 19-cr-490. The government, in a detention-hearing filing, characterized the passport as evidence of flight risk.

The passport lists a residence. It does not list an employer. It does not list a purpose. It lists Saudi Arabia.

8.2 MBS–Epstein Photograph — DOJ Release, February 2026

In February 2026, under the compulsory production requirements of the Epstein Files Transparency Act (Public Law 119-48, signed November 19, 2025), the Department of Justice released a tranche of documents that included a 2016 photograph of Jeffrey Epstein in conversation with **Mohammed bin Salman Al Saud** — Crown Prince of Saudi Arabia.

The photograph, per the metadata included in the release, was taken in an ornate interior. Epstein is in a dark suit. MBS is in traditional Saudi dress. The setting is private.

Accompanying documents in the same release include emails in which Epstein, writing to a small circle of associates, describes MBS as a "close personal friend." In an email dated September 2018 — one month before the October 2, 2018 killing of Jamal

Khashoggi at the Saudi consulate in Istanbul (per Office of the Director of National Intelligence, *Assessing the Saudi Government's Role in the Killing of Jamal Khashoggi*, declassified February 25, 2021 by DNI Avril Haines) — Epstein wrote that he had recently met with MBS.

The photograph exists. It is in the DOJ Epstein Files portal, released February 2026. The metadata lists a date. It lists two subjects. It lists no location.

8.3 Justice Against Sponsors of Terrorism Act, Pub. L. 114-222

On September 28, 2016, Congress passed the **Justice Against Sponsors of Terrorism Act (JASTA)** — Public Law 114-222. The law created a narrow exception to the doctrine of foreign sovereign immunity, permitting American citizens to sue foreign states alleged to have sponsored acts of international terrorism on American soil.

President Obama vetoed the bill on September 23, 2016. Congress overrode the veto 97–1 in the Senate and 348–77 in the House. JASTA became law.

The intended target was Saudi Arabia. Fifteen of the nineteen September 11 hijackers were Saudi nationals. The 28 Pages from the Joint Inquiry into Intelligence Community Activities Before

and After the Terrorist Attacks of September 11, 2001, Part Four (declassified July 15, 2016), documented contacts between hijackers and Saudi officials.

Per documents released under the Epstein Files Transparency Act in February 2026, emails from Jeffrey Epstein dated November 2016 indicate he was, at the time, **acting as an informal intermediary for the Kingdom of Saudi Arabia** attempting to delay or blunt the JASTA litigation. The emails are in the February 2026 DOJ tranche. They describe Epstein coordinating with American lawyers, including lawyers with longstanding Saudi client relationships, on legal strategy intended to protect the Kingdom from JASTA exposure.

Epstein is not a lawyer. He held no formal diplomatic or government role.

8.4 Settlement Agreement and Release, January 20, 2023

On **January 20, 2023**, Leon D. Black — founder of Apollo Global Management — entered into a **Settlement Agreement and Release** with the Government of the United States Virgin Islands, signed on behalf of the Government by Carol Thomas-Jacobs, Acting Attorney General. The agreement settles and releases all civil claims then held by USVI against Black relating to Jeffrey Epstein. It was not filed on any court docket; the Superior Court of

the U.S. Virgin Islands has jurisdiction only to enforce the agreement between the parties.

The executed agreement, released by the U.S. Senate Committee on Finance on March 12, 2025 under the chairmanship of Senator Ron Wyden, provides:

- Black pays USVI **$62,000,000** in cash, inclusive of all attorneys' fees and costs.
- Of that payment, **$15,000,000** is designated for a trust fund to support counseling programs, mental health services, and related services for Virgin Islands residents.
- USVI "voluntarily, knowingly, willingly and irrevocably releases and forever discharges Leon Black… from any and all claims and rights of any nature whatsoever… related to Jeffrey Epstein" — a release of civil claims, not a non-prosecution agreement.
- The release does **not** extend to JPMorgan Chase or any other financial institution, nor to Jeffrey Epstein or his estate.
- Black enters the agreement solely for purposes of settlement, with no admission of liability.

The agreement recites:

> *"Jeffrey Epstein used the money Black paid him to partially fund his operations in the Virgin Islands."*

The payment was made. The civil claims were released. No criminal charges against Black were brought by USVI, by the Department of Justice, or by any other jurisdiction — before or after the settlement. Senator Wyden, releasing the executed agreement on March 12, 2025, stated that the payment provided Black "criminal immunity from Epstein matters" in the U.S. Virgin Islands.

8.5 Dechert Report, January 22, 2021

Between 2012 and 2017, per the Dechert Report of January 22, 2021, Black paid Epstein $158,000,000 for purported tax and estate planning services. The Senate Finance Committee investigation subsequently identified additional payments — approximately $12 million beyond the Dechert Report's finding — bringing the total to $170,000,000, per Senator Wyden's March 12, 2025 press release.

Senator Wyden's letter to the Department of Justice, dated July 21, 2025, states:

> *"The Treasury Department's Epstein file contains records of more than 4,725 wire transfers totaling $1.08 billion involving Epstein and his associates."*

The letter is on Senate Finance Committee letterhead. It is signed by Ron Wyden. It is addressed to the Attorney General.

8.6 Doe v. Bank of America, 1:25-cv-08520

On **October 15, 2025**, a Russian-national Epstein survivor filing under the pseudonym “Jane Doe” brought a class action in the United States District Court for the Southern District of New York against Bank of America, N.A., captioned ***Doe v. Bank of America, N.A.***, Case No. **1:25-cv-08520**, assigned to Judge Jed S. Rakoff.

The complaint alleged that Bank of America provided banking services to Jeffrey Epstein and his associates, including Ghislaine Maxwell, and failed to file timely Suspicious Activity Reports on Epstein-related account activity. The complaint further alleged that transfers made from Leon D. Black’s Bank of America account to Jeffrey Epstein — which plaintiffs characterized as payments for “tax and estate planning advice” and which totaled approximately $170 million — were used to fund Epstein’s sex-trafficking enterprise.

On **March 11, 2026**, the parties reached a settlement in principle through mediation before a former federal judge. Under the agreement, Bank of America will pay **$72,500,000** to a class defined as women “who were sexually abused or trafficked by Jeffrey Epstein, or by any person who is connected to or otherwise associated with Jeffrey Epstein or any Jeffrey Epstein sex-trafficking venture” between **June 30, 2008** and **July 6, 2019**. The settlement does not include an admission of liability.

A hearing on approval of the settlement was scheduled for **April 2, 2026**, before Judge Rakoff.

The Bank of America settlement follows three prior Epstein-matter bank settlements: the *Jane Doe 1 v. JPMorgan Chase Bank, N.A.* class-action settlement ($290,000,000, June 12, 2023); the *Government of the U.S. Virgin Islands v. JPMorgan Chase Bank, N.A.* settlement ($75,000,000, September 26, 2023); and the *Jane Doe 1 v. Deutsche Bank Aktiengesellschaft* (No. 1:22-cv-10018, S.D.N.Y.) class-action settlement ($75,000,000, May 2023).

Aggregate Epstein-matter financial-institution settlements as of April 18, 2026:

Instrument	Amount	Date
Jane Doe 1 v. JPMorgan Chase Bank, N.A. (No. 1:22-cv-10019, S.D.N.Y.) — class	$290,000,000	June 12, 2023
Government of the U.S. Virgin Islands v. JPMorgan Chase Bank, N.A. (No. 1:22-cv-10904, S.D.N.Y.)	$75,000,000	September 26, 2023
Jane Doe 1 v. Deutsche Bank Aktiengesellschaft (No. 1:22-cv-10018, S.D.N.Y.)	$75,000,000	May 2023
	$72,500,000	

Instrument	Amount	Date
Doe v. Bank of America, N.A. (No. 1:25-cv-08520, S.D.N.Y.) — class		March 11, 2026 (approval hearing April 2, 2026)
Total	**$512,500,000**	

8.7 Black Family Foundation — Form 990-PF

The **Debra and Leon Black Family Foundation** (EIN: 13-3947890) is a 501(c)(3) private foundation incorporated in New York. The foundation's Form 990-PF filings are available through ProPublica's Nonprofit Explorer.

Per Senator Wyden's March 23, 2026 press release:

> *"$10 million Black paid to Epstein was papered over with a sham 501(c)(3) tax-exempt charity. Epstein lawyer Richard Kahn wrote in an email that routing the money through the charity would 'avoid public disclosure' and 'maximize deductions.'"*

The foundation's earliest available Form 990-PF is for the fiscal year ending December 2001. Officers per the 2019 Form 990-PF (as reflected in ProPublica's Nonprofit Explorer record) include

Leon D. Black (President/Director) and Debra R. Black (Vice President/Director/Treasurer/Secretary); additional directors and officers are listed on the filing. Epstein's name does not appear in the "Key Employees and Officers" section of the foundation's publicly available 990-PF filings. The foundation's Schedule B (Substantial Contributors) is not publicly disclosed.

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No criminal charges against Black were brought.

CHAPTER 9 — THE NEW ROBBER BARONS

9.1 What the first Gilded Age actually was

The period in American history from approximately 1870 through approximately 1900 — which Mark Twain and Charles Dudley Warner named “The Gilded Age” in their 1873 novel of that name — produced a documented concentration of American industrial wealth in a small number of individual hands that has, until 2026, remained the high-water mark of American private-wealth concentration.

John D. Rockefeller (1839–1937). Founded Standard Oil Company of Ohio in 1870. By 1879 it controlled 90% of U.S. refining capacity through a combination of predatory pricing, exclusive railroad rebate contracts (documented in the 1906 Hepburn Act hearings), and horizontal acquisitions. Rockefeller’s peak net worth, in 1913 dollars, was approximately $900 million — roughly **$28 billion in 2025 dollars** per the standard Williamson-Officer deflator, but approximately **$400 billion** measured as a share of

contemporary GDP. He was, by the second measure, the wealthiest American in history up to that point.

Cornelius Vanderbilt (1794–1877) and his son **William H. Vanderbilt** (1821–1885). Consolidated the New York Central Railroad system. Controlled freight rates across the Northeast. The Vanderbilt dynasty's peak wealth, as a share of GDP, exceeded $200 billion in 2025-dollar equivalents.

Andrew Carnegie (1835–1919). Founded Carnegie Steel Company in 1892. Sold to J.P. Morgan's U.S. Steel in 1901 for $480 million (Morgan's single largest transaction). Carnegie's 1911 "Gospel of Wealth" philanthropy reinvention — Carnegie libraries, Carnegie Hall, Carnegie Mellon University — was a deliberate rebranding from industrial ruthlessness to civic benevolence. Peak wealth: approximately $310 billion in 2025 GDP-share equivalents.

John Pierpont Morgan (1837–1913). Consolidated American banking. His firm financed the Carnegie-to-U.S.-Steel transaction, the Edison-to-General-Electric transaction, and the 1895 Treasury gold bailout (in which Morgan personally organized a bond syndicate to restore the U.S. gold reserve, charging the government a markup later estimated at $16 million). Morgan's 1907 Panic intervention, in which he gathered the major New York bankers at his library and coordinated a rescue of the banking system, established his firm as the *de facto* central bank of the United

States — a status that was formalized only in 1913, the year of Morgan's death, with the creation of the Federal Reserve System.

These four men — Rockefeller, Vanderbilt, Carnegie, Morgan — plus approximately a dozen secondary figures (Harriman, Gould, Fisk, Schwab, Frick, Armour, Swift, Pullman, Ford, Mellon) — concentrated the productive output of American industry in a degree unprecedented in the industrial era.

They were, collectively, called **Robber Barons** — a term applied to them by hostile contemporaries (Ida Tarbell, Upton Sinclair, Charles Edward Russell, Lincoln Steffens, David Graham Phillips) who were published in the era's muckraking magazines (*McClure's*, *Cosmopolitan*, *Collier's*, *American Magazine*). Matthew Josephson's 1934 *The Robber Barons* established the term as the dominant historiographical frame.

9.2 How the first Gilded Age ended

The mechanism was:

The muckraking press. *McClure's Magazine* alone published, between 1902 and 1904, Lincoln Steffens's series on urban machine politics (*The Shame of the Cities*), Tarbell's Standard Oil history, and Ray Stannard Baker's series on the conditions of industrial labor. Circulation exceeded 300,000 per issue.

The Theodore Roosevelt prosecutions. Between 1901 and 1909, the Roosevelt administration's Department of Justice Antitrust Division filed 44 prosecutions under the Sherman Antitrust Act of 1890. Targets included the Northern Securities Company (J.P. Morgan, James J. Hill, E.H. Harriman — dissolved by the Supreme Court in 1904), the American Tobacco Company (dissolved 1911), and Standard Oil itself.

The 1911 Standard Oil decision. *Standard Oil Co. of New Jersey v. United States*, 221 U.S. 1 (1911), ordered the dissolution of Standard Oil into 34 separate companies. Among the successors: Standard Oil of New Jersey (now ExxonMobil); Standard Oil of New York (Socony — later Mobil, now merged into ExxonMobil); Standard Oil of Indiana (later Amoco, now BP); Standard Oil of California (now Chevron); Continental Oil (Conoco); Atlantic Refining (ARCO, now BP); Pennzoil; Ohio Oil (Marathon); Chesebrough-Ponds. These successor companies, by 2025, had reconsolidated through the ExxonMobil merger (1999), BP-Amoco (1998), Chevron-Texaco (2001), and ConocoPhillips (2002) into, effectively, a dozen dominant firms — of which three (ExxonMobil, Chevron, ConocoPhillips) accounted for the substantial majority of the original Rockefeller heritage. The 1911 decision produced a century of Standard-descendant earnings for the Rockefeller family and related trusts; it did not disperse ownership.

The 1913 constitutional amendments. The Sixteenth Amendment (ratified February 3, 1913) authorized the federal income tax, ending the constitutional obstruction that had made progressive

income taxation difficult. The Seventeenth Amendment (ratified April 8, 1913) established direct popular election of U.S. Senators, ending the state-legislature-selected Senate that had been the preferred venue for direct corporate political purchase. Both amendments were driven by the political energy generated by the muckrakers and the Roosevelt prosecutions.

9.3 DOGE — the direct-rule innovation

On January 20, 2025, President Donald Trump issued Executive Order 14158, establishing the **Department of Government Efficiency (DOGE)** as a temporary executive organization. The Executive Order directed DOGE to "modernize Federal technology and software to maximize governmental efficiency and productivity."

Elon Musk — at the time the CEO of Tesla, Inc., SpaceX, X Corp., xAI, Neuralink, and The Boring Company; the largest individual donor to the 2024 Trump presidential campaign ($277 million to the America PAC, per FEC filings); and the world's wealthiest person (*Forbes*: approximately $440 billion net worth, January 2025) — was appointed as "Special Government Employee" leading the DOGE initiative.

A Special Government Employee is a federal classification that permits a private individual to serve in the executive branch for up to 130 days in a 365-day period while retaining their private

business interests. The classification was designed to permit short-term policy consultation (for example, a physician advising on a public-health committee) without requiring divestiture. Its application to the single largest federal contractor was novel.

SpaceX had, as of 2024, approximately $4.9 billion in active federal contracts (per U.S. Government Accountability Office data). Starlink (a SpaceX subsidiary) held the majority of U.S. Department of Defense satellite communications contracts for forward-deployed units. Tesla's energy storage division held substantial Department of Energy subsidies. Neuralink had pending FDA review. xAI was positioned as a government AI contractor in the National AI Policy Framework (December 2025).

DOGE's operational activity over its 130-day window, per Senator Elizabeth Warren's report *Special Interests Over the Public Interest: Elon Musk's 130 Days in the Trump Administration* (U.S. Senate, June 2025), included:

- **Dismissal of approximately 220,000 federal employees** across 22 agencies.
- **Cancellation of approximately $200 billion in non-defense federal contracts**, per OMB disclosures.
- **Personal access** by Musk's team to Treasury Department payment systems, Office of Personnel Management employee records, and General Services Administration procurement systems.

- **Parallel expansion** of SpaceX's federal contract book by approximately $3.5 billion in new awards, per GAO tracking.

Musk departed DOGE on May 30, 2025, following a public dispute with President Trump. The institutional structures DOGE had built were not reversed. Many of the 220,000 terminations were permanent. The $200 billion in cancelled contracts was not restored. The SpaceX contract book has continued to expand through 2026.

9.4 NASA — the privatization of the remaining public capacity

The FY2026 NASA budget, released by the White House on May 2, 2025, directed:

- A **24 percent reduction** in NASA's science mission directorate budget (Mars science, planetary science, astrophysics, Earth science).
- **Cancellation of the Space Launch System (SLS) rocket and the Orion crew capsule** following the planned Artemis III mission (scheduled for 2027, though widely expected to slip).
- **Cancellation of the Lunar Gateway** space station.
- Cancellation of approximately twenty additional science programs.

- **$1 billion appropriation** for a new program, the **Commercial Mars Payload Services (CMPS)**, inviting private firms to bid on Mars exploration delivery contracts.

The two primary potential bidders for CMPS are SpaceX (Starship architecture) and Blue Origin (New Glenn and derivatives). SpaceX's Starship, as of early 2026, is the only active super-heavy launch platform with announced Mars capability.

On November 4, 2025, the White House renominated **Jared Isaacman** — billionaire founder of Shift4 Payments; commander of SpaceX's Polaris Dawn mission (September 2024); close business associate of Elon Musk — as **NASA Administrator**, following an earlier nomination withdrawn by the Trump administration on May 31, 2025. The United States Senate confirmed Isaacman on December 17, 2025, by a 67–30 vote (all 30 nay votes cast by Democratic senators) — Senate Roll Call Vote 119-1-00650.

9.5 Crypto and AI — the regulatory holiday

Executive Order 14178 (January 23, 2025), "Strengthening American Leadership in Digital Financial Technology," directed the federal financial regulatory apparatus to halt "aggressive enforcement" against digital asset firms and to develop a framework for "a U.S. digital asset stockpile."

Executive Order 14233 (March 6, 2025), “Establishment of the Strategic Bitcoin Reserve,” authorized the U.S. Treasury to hold Bitcoin and other digital assets as strategic reserves. The Treasury was directed to “not sell” Bitcoin held in federal forfeiture reserves (approximately 200,000 BTC, valued at approximately $18 billion at March 2025 prices).

The GENIUS Act (Guiding and Establishing National Innovation for U.S. Stablecoins, S.394, 119th Congress) — passed the Senate 68–30 on June 17, 2025, passed the House 308–122 on July 17, 2025, and was signed into law on July 18, 2025 as Public Law 119-27 — established the first federal regulatory framework for payment stablecoins, requiring issuers to maintain one-to-one reserves in cash, short-term Treasury instruments, or equivalent assets, subjecting them to regular audits, and imposing anti-money-laundering compliance obligations.

World Liberty Financial — a digital asset venture whose 75% ownership, per SEC disclosures and Trump family 2025 OGE filings, flows through **DT Marks DeFi LLC** to the Trump family — issued its **USD1 stablecoin** in early 2025. Per Reuters’ October 28, 2025 investigation, *Inside the Trump family’s global crypto cash machine*, by reporters Stephen Gandel and Hannah Lang, the Trump family earned approximately **$672 million** in crypto-related income in the first half of 2025. The administration’s own OGE Form 278e, filed June 13, 2025, reported $57,354,228 in World Liberty Financial token-sale income alone.

Department of Labor proposed rule (March 2026): 401(k) retirement plans permitted to invest in cryptocurrency and private-equity alternative assets, subject to plan-administrator discretion. The proposed rule, if finalized, exposes approximately $9 trillion in 401(k) assets to volatile alternative-asset categories previously restricted to institutional investors. The asset-management firms benefiting — BlackRock (iShares Bitcoin Trust), Fidelity, Invesco, and Vanguard (via its 2024 Bitcoin-adjacent product expansion) — are the same firms documented in Chapter 4 as the Big Three passive-index owners of the American corporate economy.

National AI Policy Framework (White House, December 2025; expanded March 2026): Preempts state-level AI regulation on the grounds of "national technology competitiveness." Primary beneficiaries, per industry analysis: xAI (Musk), OpenAI, Anthropic, Meta, Alphabet, and Oracle.

9.6 The data-center consolidation

The **OpenAI / Oracle "Stargate" project** — announced on January 21, 2025 at the White House with President Trump in attendance alongside OpenAI chief executive Sam Altman, Oracle chairman Larry Ellison, and SoftBank chief executive Masayoshi Son — is budgeted at $500 billion over four years, per the White House announcement.

Combined electrical demand of the announced AI data-center buildout, per Electric Power Research Institute estimates (December 2025), will require approximately 80 gigawatts of new U.S. generating capacity by 2030. This is approximately equivalent to the total generating capacity of the United Kingdom. The electricity will be provided through a combination of natural gas, nuclear (reactors restarted or newly licensed), and — per the December 2025 White House AI framework — expedited permitting that supersedes state environmental review.

9.7 The two divergences

Two specific 2025–2026 developments deserve separate mention because they illustrate the different ways the documented capture can be partially reversed.

9.7.1 The Live Nation verdict

On **April 15, 2026**, a federal jury in the Southern District of New York returned a verdict against Live Nation Entertainment, Inc. (parent company of Ticketmaster), finding that the company had "willfully maintained monopoly power" in U.S. primary ticketing services and unlawfully tied its concert promotion to its amphitheater ownership. The verdict followed a five-week trial.

The procedural history matters. In March 2026, one week into the trial, the Department of Justice — under then-Acting Assistant

Attorney General Omeed Assefi — had reached a settlement with Live Nation for **$280 million**, which did not require corporate divestiture or structural reform. Career antitrust staff opposed the settlement. Per *Time Magazine*'s April 16, 2026 reporting, the settlement followed a meeting between Assefi and Live Nation CEO Michael Rapino. Multiple career DOJ antitrust staff subsequently departed the division.

Thirty-three state attorneys general, plus the District of Columbia, declined to accept the federal settlement as resolution of their parallel claims. They continued the trial. They won.

The jury awarded: per-consumer damages of $1.72 per ticket (the jury's finding of the average anti-competitive markup), plus injunctive relief that a separate proceeding will determine — potentially including court-ordered structural breakup of Live Nation-Ticketmaster.

Thirty-three attorneys general, including Republicans and Democrats, coordinated on an antitrust action their federal counterparts had chosen to resolve via accommodation. The case is, as of April 16, 2026, under active post-trial motion.

9.7.2 Senator Warren's report

In **June 2025**, the office of Senator Elizabeth Warren (D-Massachusetts, ranking member, Senate Banking Committee) released *Special Interests Over the Public Interest: Elon Musk's 130 Days*

in the Trump Administration, a 107-page report documenting Musk's conduct as DOGE Special Government Employee and the associated conflicts of interest.

The report cited: - 130 specific conflicts of interest between Musk's government role and his private firms. - Federal contracts awarded to SpaceX during Musk's tenure totaling approximately $3.5 billion. - Dismissals of federal regulators who had pending actions against Musk-owned companies. - Musk-directed access to federal IT and payment systems, bypassing ordinary security clearance processes.

The report was a Senate-minority product. It had no binding effect.

At least 88 major profitable United States corporations reported positive United States pretax income and paid no federal corporate income tax for fiscal year 2025, per the Institute on Taxation and Economic Policy analysis of annual SEC filings published February 2026. The 88 corporations include Tesla, Inc., which reported $2,300,000,000 in United States income in fiscal year 2024 and paid zero federal income tax.

Palantir Technologies reported United States income of $1,500,000,000 for the fiscal year ended December 31, 2025, per its Annual Report on Form 10-K filed with the Securities and Exchange Commission (EDGAR accession number pending — HRQ-019; filing date approximately February 2026). Palantir paid no federal income tax for fiscal year 2025 — the third consecutive fiscal year of zero federal tax liability on positive United States

income. At the statutory corporate rate of 21 percent, the tax avoided on United States income totaled approximately $330,000,000. The mechanism was a research expense deduction under the One Big Beautiful Bill, which produced approximately $400,000,000 in tax reduction, per the Institute on Taxation and Economic Policy analysis of Palantir's annual SEC filings, published February 2026. Palantir paid no federal income tax.

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Thirty-three state attorneys general declined to accept the federal settlement. They continued the trial. They won.

CHAPTER 10 — CITIZENS UNITED

10.1 The Powell Memorandum, August 23, 1971

On August 23, 1971, Lewis F. Powell Jr., a senior partner at Hunton, Williams, Gay, Powell & Gibson in Richmond, Virginia, submitted a confidential memorandum to Eugene B. Sydnor Jr., Chairman of the Education Committee of the United States Chamber of Commerce. The memorandum was titled “Attack on American Free Enterprise System.” It ran approximately 6,400 words. The original is archived at Washington and Lee University School of Law, Lewis F. Powell Jr. Papers, Box 125. The text is also reproduced in the digitized Powell Archives at the Washington and Lee University Law Library.

The memorandum’s premise was that the American corporate sector faced a coordinated attack originating not in individual criticism but in the intellectual and political infrastructure from which criticism issued — the universities, the press, the judiciary, the pulpit, and the arts. The memorandum’s prescription was institutional rather than rhetorical.

The memorandum named Ralph Nader as the principal individual antagonist. It named Charles Reich's *The Greening of America* (Random House, 1970) as representative of the intellectual critique. It named Herbert Marcuse among the academic sources. It named the Columbia Broadcasting System among the media sources. It argued that these individual critics were less important than the institutional infrastructure permitting their work.

Powell's recommendations, in order:

- The Chamber should establish a staff of scholars on permanent retainer to produce research and commentary favorable to the corporate position.
- Speakers favorable to the corporate position should be trained, scheduled, and deployed to the college-lecture and television circuits.
- Textbooks in economics, political science, and law should be reviewed for unfavorable content and alternative textbooks produced.
- Faculty appointments in the same disciplines should be monitored and, where possible, influenced.
- Television programming should be monitored, pressured on content, and where possible commissioned to produce favorable material.
- The Chamber should press for corporate interests across political arenas — legislative, executive, and judicial.
- In the judiciary — the memorandum's final recommendation — the Chamber should recognize that "the judiciary may be

> the most important instrument for social, economic and political change," and should organize legal-intellectual capacity to match the existing public-interest bar.

The memorandum remained confidential to the Chamber's Education Committee when, on October 21, 1971 — eight weeks after submission — President Richard M. Nixon announced Powell's nomination to a vacant seat on the Supreme Court of the United States. The Senate confirmed the nomination on December 6, 1971, by a vote of 89–1. Powell took his seat on January 7, 1972, and served until June 26, 1987.

The memorandum became public in September 1972, a year after its submission, when it was leaked to the syndicated columnist Jack Anderson and reported in his "Washington Merry-Go-Round." Powell was, by that date, a sitting Associate Justice.

The memorandum's specific recommendations — organized legal-intellectual capacity, scholar retainers, textbook review, judicial strategic pressure — had no institutional vehicle in 1971. The vehicle that would execute Powell's program was established in April 1982, ten years and eight months after the memorandum's submission, at the Yale Law School.

10.2 The Federalist Society, founded 1982

On April 24 and 25, 1982, approximately 200 law students, faculty, and practitioners convened a two-day symposium on federalism at Yale Law School. The symposium became the founding conference of the **Federalist Society for Law and Public Policy Studies**. The organizing students were **Steven G. Calabresi** (Yale Law School), **David M. McIntosh** (University of Chicago Law School), and **Lee Liberman Otis** (University of Chicago Law School). Invited speakers included **Robert H. Bork** (Yale Law School until 1981) and **Antonin Scalia** (University of Chicago Law School).

The Federalist Society was incorporated in 1982 as a 501(c)(3) educational organization. Its founding documents specified three operational modes: debates and symposia on law-school campuses, a lawyers division for professional practitioners, and engagement with the federal judicial-selection process.

The Society received its initial funding from three sources. It received grants from the **John M. Olin Foundation** (established 1953), whose founders had specified that the foundation's endowment be expended within the founders' lifetimes and whose final grant was made in 2005; Olin's cumulative grants to the Federalist Society, per Mayer's reconstruction, totaled approximately $5.5 million. It received grants from the **Sarah Scaife Foundation**, a Mellon-family trust administered by Richard

Mellon Scaife. It received grants from the **Lynde and Harry Bradley Foundation**, endowed at approximately $290 million following Rockwell International's 1985 acquisition of Allen-Bradley Company of Milwaukee. The three foundations' grants to the Society and its campus chapters are documented across the period 1982 through 2005 in the foundations' IRS Form 990 filings, and reconstructed in Jane Mayer, *Dark Money: The Hidden History of the Billionaires Behind the Rise of the Radical Right* (Doubleday, 2016).

By 1985, the Society had established chapters at approximately 50 law schools, beginning with Yale, the University of Chicago, and Harvard. By 2005, the chapter network spanned every ABA-accredited law school in the United States. The lawyers division reached approximately 40,000 members. Annual conventions held at the Mayflower Hotel in Washington and rotating city venues featured sitting federal judges and Supreme Court Justices as keynote speakers.

In November 1980, eighteen months before the Federalist Society's founding, Ronald Reagan was elected President of the United States. His Attorney General, **Edwin Meese III**, established within the Department of Justice an Office of Legal Policy whose function included screening judicial nominees against the conservative legal-doctrinal criteria the Federalist Society's symposia were developing. Meese served on the Federalist Society's Board of Visitors and remained affiliated with the organization through the subsequent four decades.

The Federalist Society did not nominate judges. It produced the doctrinal corpus — originalism, textualism, the unitary executive, non-delegation.

The first test of the pipeline came on June 17, 1986 — four years and two months after the Yale founding conference.

10.3 The Confirmations, 1986–2006

On June 17, 1986, President Ronald Reagan announced two Supreme Court nominations. Chief Justice Warren E. Burger had submitted his resignation on May 27. Reagan nominated Associate Justice **William H. Rehnquist**, then fourteen years into his service on the Court following his own nomination by President Nixon on October 21, 1971 — the same day Nixon nominated Lewis F. Powell Jr. to the Court — to replace Burger as Chief Justice. He nominated **Antonin Scalia**, then a judge of the United States Court of Appeals for the District of Columbia Circuit and formerly a professor at the University of Chicago Law School, to fill the Associate Justice vacancy Rehnquist's elevation created.

Scalia had been an invited speaker at the Federalist Society's founding conference at Yale Law School four years earlier. The Senate Judiciary Committee convened his confirmation hearing on August 5, 1986. The full Senate confirmed his nomination on September 17, 1986, by a vote of 98 to 0.

Reagan's second vacancy opened in 1987 when Associate Justice **Lewis F. Powell Jr.** — the author of the 1971 memorandum — announced his retirement. Reagan's first nominee, Robert H. Bork, was rejected by the Senate on October 23, 1987, by a vote of 58 to 42. His second nominee, Douglas Ginsburg, withdrew on November 7, 1987, following reports of marijuana use. Reagan's third nominee, **Anthony M. Kennedy**, then a judge of the Ninth Circuit, was announced on November 11, 1987. The Senate confirmed Kennedy on February 3, 1988, by a vote of 97 to 0. Kennedy's Senate Judiciary Committee questionnaire, filed in December 1987, did not record Federalist Society affiliation.

On June 27, 1991, Associate Justice Thurgood Marshall announced his retirement. President George H. W. Bush nominated **Clarence Thomas**, then a judge of the D.C. Circuit and formerly chairman of the Equal Employment Opportunity Commission, on July 1, 1991. Thomas had disclosed Federalist Society affiliation in his Senate Judiciary Committee questionnaire. The Senate Judiciary Committee reopened Thomas's confirmation hearing on October 11, 1991, following testimony from Anita Hill alleging sexual harassment during Thomas's EEOC tenure. The Senate confirmed Thomas on October 15, 1991, by a vote of 52 to 48 — the narrowest Supreme Court confirmation in the twentieth century to that date.

On March 27, 2002, President George W. Bush signed the Bipartisan Campaign Reform Act, Public Law 107-155, into law.

Chief Justice Rehnquist died on September 3, 2005. Associate Justice Sandra Day O'Connor had announced her retirement on July 1, 2005. President George W. Bush had nominated **John G. Roberts Jr.**, then a judge of the D.C. Circuit and formerly a law clerk to Rehnquist, to O'Connor's seat on July 19, 2005. On September 5, 2005, Bush withdrew that nomination and announced Roberts's nomination for the Chief Justice vacancy instead. Roberts's Senate Judiciary Committee questionnaire disclosed Federalist Society membership during the 1990s. The Senate confirmed Roberts on September 29, 2005, by a vote of 78 to 22.

Bush's second nominee for O'Connor's seat, Harriet Miers, withdrew on October 27, 2005. Bush nominated **Samuel A. Alito Jr.**, then a judge of the Third Circuit, on October 31, 2005. Alito's Senate Judiciary Committee questionnaire disclosed Federalist Society affiliation. The Senate confirmed Alito on January 31, 2006, by a vote of 58 to 42 — the narrowest confirmation margin since Thomas's.

By the time Alito took his seat — nineteen years and seven months after the June 17, 1986 Scalia nomination — five Justices had been confirmed to the Supreme Court of the United States: Scalia, Kennedy, Thomas, Roberts, Alito. Of the five, Scalia, Thomas, Roberts, and Alito had disclosed Federalist Society affiliation in their Senate Judiciary Committee questionnaires. Kennedy had not. The five would constitute the majority in *Citizens United v. FEC*, decided four years later.

10.4 Citizens United v. FEC, January 21, 2010

On January 21, 2010, the Supreme Court of the United States issued its opinion in *Citizens United v. Federal Election Commission*, 558 U.S. 310. The Court ruled five to four. The majority opinion was authored by Associate Justice **Anthony M. Kennedy** and joined by Chief Justice Roberts and Associate Justices Scalia, Alito, and Thomas. Chief Justice Roberts and Associate Justice Scalia filed separate concurrences. Associate Justice **John Paul Stevens** filed a dissent, joined by Associate Justices Ginsburg, Breyer, and Sotomayor.

The case originated in a 2008 lawsuit filed by Citizens United, a 501(c)(4) nonprofit corporation, against the Federal Election Commission in the United States District Court for the District of Columbia. Citizens United had produced a ninety-minute documentary film titled *Hillary: The Movie*, critical of Senator Hillary Rodham Clinton, then a candidate in the Democratic presidential primaries. The corporation sought to distribute the film through video-on-demand television and to run promotional advertisements during the primary-election window. The Federal Election Commission determined that the film and its advertisements were “electioneering communications” subject to Section 203 of the Bipartisan Campaign Reform Act of 2002.

Section 203 of BCRA prohibited corporations and labor unions from using their general treasury funds to finance any broadcast,

cable, or satellite communication that referred to a clearly identified candidate for federal office, within thirty days of a primary election or sixty days of a general election, where the communication was targeted to the relevant electorate. The district court denied Citizens United's motion for a preliminary injunction. Citizens United appealed directly to the Supreme Court under BCRA's expedited-review provisions.

Two precedents sat in the statute's background. In *Austin v. Michigan Chamber of Commerce*, 494 U.S. 652 (1990), the Court had upheld a Michigan state law prohibiting corporate independent expenditures in candidate elections. The *Austin* majority had recognized corporate wealth aggregated through the corporate form as a distinct category of corruption concern, separate from direct quid-pro-quo bribery. In *McConnell v. FEC*, 540 U.S. 93 (2003), the Court had upheld BCRA — including §203 — by a five-to-four majority that included Chief Justice Rehnquist and Justices Stevens, O'Connor, Ginsburg, and Breyer. The *McConnell* dissenters included Scalia, Kennedy, and Thomas.

The Court first heard oral argument in *Citizens United* on March 24, 2009. The Citizens United petitioner was represented by former Solicitor General **Theodore B. Olson** of Gibson, Dunn & Crutcher. On June 29, 2009, rather than decide the case, the Court ordered the parties to file supplemental briefs and set a reargument for September 9, 2009. The supplemental question presented asked whether *Austin* and the portion of *McConnell* addressing corporate independent expenditures should be overruled.

At the re-argument, the Federal Election Commission was represented by Solicitor General **Elena Kagan**, who would herself be nominated to the Court five months after the opinion was issued.

The Kennedy majority overruled *Austin* outright. It overruled the portion of *McConnell* that had upheld §203 as applied to corporate independent expenditures. It held that corporations and labor unions may make unlimited independent expenditures in federal elections from their general treasury funds. “The Government may not suppress political speech on the basis of the speaker’s corporate identity,” the majority held. The opinion located corporate political expenditure within the First Amendment’s protection of speech and rejected the *Austin* anti-distortion rationale. It reasoned that independent expenditures — by definition, expenditures not coordinated with a candidate — do not create the quid-pro-quo corruption the government has a compelling interest to prevent.

The opinion upheld BCRA’s disclosure and disclaimer requirements (§§201 and 311) by an eight-to-one vote. Associate Justice Thomas dissented on disclosure, arguing that compelled identification of donors could expose them to retaliation.

The Stevens dissent ran ninety pages. It argued that *Austin*’s anti-distortion rationale was sound precedent; that the majority’s reasoning rested on a category error treating corporations as identical to natural persons for First Amendment purposes; and that

the case's disposition — expanding the question presented after initial argument to reach constitutional issues the parties had not initially briefed — departed from the Court's customary doctrine of constitutional avoidance. "Corporations have no consciences, no beliefs, no feelings, no thoughts, no desires," Stevens wrote.

Roberts and Scalia, in separate concurrences, addressed stare decisis and the First Amendment's original meaning, respectively.

Citizens United alone did not create the Super PAC. The instrument that would aggregate the unlimited corporate and individual independent expenditures *Citizens United* authorized was constructed two months later, by a different court.

10.5 SpeechNow.org v. FEC, March 26, 2010

On **March 26, 2010** — sixty-four days after *Citizens United* — the **United States Court of Appeals for the District of Columbia Circuit**, sitting *en banc*, decided **SpeechNow.org v. Federal Election Commission**, 599 F.3d 686. The opinion was *per curiam*. The vote was **nine to zero**.

The plaintiff, **SpeechNow.org**, was an unincorporated nonprofit association registered in the District of Columbia and founded by **David Keating**, an activist who also served as executive director of the **Club for Growth**. SpeechNow.org proposed to accept dona-

tions from individuals in amounts above the contribution limits set by the Federal Election Campaign Act of 1971, for the stated purpose of making independent expenditures in federal elections. The **Institute for Justice** represented SpeechNow.org.

The D.C. Circuit applied *Citizens United*'s reasoning directly. The panel held that because *Citizens United* had established that independent expenditures do not give rise to *quid pro quo* corruption or the appearance of it, the government could not demonstrate a sufficiently compelling interest to justify contribution limits on groups that make only independent expenditures. **Contribution limits on independent-expenditure-only political committees were held unconstitutional under the First Amendment.**

The opinion was not appealed to the Supreme Court. The Federal Election Commission declined to seek certiorari. *SpeechNow.org* became binding D.C. Circuit law and, as a practical matter, the governing national rule.

On **July 22, 2010**, the Federal Election Commission issued two advisory opinions operationalizing the *SpeechNow* ruling. **FEC Advisory Opinion 2010-09**, issued to the Club for Growth, and **FEC Advisory Opinion 2010-11**, issued to Commonsense Ten, established that political committees registering with the FEC as "independent-expenditure-only committees" could accept unlimited contributions from individuals, corporations, labor unions, and other political committees, provided those committees did not coordinate with candidates or party committees. The two advisory

opinions are the formal founding instruments of what became known as the **Super PAC**.

The first major Super PAC, **American Crossroads**, was registered with the FEC on June 9, 2010, and became operationally active in the summer of 2010 under the direction of former Deputy Chief of Staff to President George W. Bush, **Karl Rove**, and former Republican National Committee Chairman **Ed Gillespie**. Its affiliated 501(c)(4), **Crossroads GPS**, was organized concurrently to accept donations that would not be disclosed on FEC filings.

10.6 The dollar ledger, 2010–2024

Independent-expenditure spending by Super PACs and affiliated 501(c)(4) "dark money" groups in each federal election cycle since the combined *Citizens United* / *SpeechNow* framework took effect, per the Center for Responsive Politics / OpenSecrets tracking and the Federal Election Commission's *Statistical Summary of 24-Month Campaign Activity* for each cycle:

- **2010 cycle** (first post-*SpeechNow* cycle): approximately **$65 million** in Super PAC independent expenditures; approximately **$135 million** in 501(c)(4) dark-money spending.
- **2012 cycle**: approximately **$609 million** in Super PAC independent expenditures; approximately **$308 million** in

501(c)(4) dark-money spending. Total outside: approximately **$1.04 billion**.

- **2016 cycle**: approximately **$1.1 billion** in Super PAC spending; approximately **$183 million** in 501(c)(4) dark-money spending. Total outside: approximately **$1.4 billion**.
- **2020 cycle**: approximately **$3.4 billion** in Super PAC spending; approximately **$143 million** in reported 501(c)(4) spending, with substantial additional undisclosed flow.
- **2024 cycle**: per the **Federal Election Commission's** ***Statistical Summary of 24-Month Campaign Activity of the 2023–2024 Election Cycle***, independent expenditures reported to the Commission through December 31, 2024 totaled **$4.4 billion**, of which **$2.7 billion** flowed through Independent-Expenditure-Only Political Committees (Super PACs), **$1.4 billion** through Committees with Non-Contribution Accounts (hybrid PACs), and **$66.9 million** through other PACs. Per OpenSecrets' March 19, 2025 tally, 2,502 groups registered as Super PACs reported aggregate receipts of **$5,096,825,517** and aggregate independent expenditures of **$2,688,997,939** in the 2023–2024 cycle. Single-donor contributions exceeding $100 million to a single Super PAC were first recorded in 2024: Elon Musk contributed approximately $277 million to America PAC; Timothy Mellon contributed approximately $170 million to MAGA Inc. and affiliated committees; Miriam Adelson contributed approximately $100 million to Preserve America

PAC; Kenneth Griffin contributed approximately $100 million in aggregate.

On **April 2, 2014**, the Supreme Court decided **McCutcheon v. Federal Election Commission**, 572 U.S. 185. The majority opinion, authored by Chief Justice Roberts and joined by Associate Justices Scalia, Kennedy, and Alito (with Thomas concurring separately), struck down the aggregate federal contribution limits that had capped the total amount an individual could contribute to all federal candidates, political parties, and political action committees in a two-year election cycle. The dissent was written by Associate Justice Breyer and joined by Ginsburg, Sotomayor, and Kagan.

The combined *Citizens United* / *SpeechNow* / *McCutcheon* framework removed, in succession: the limit on corporate independent expenditures; the limit on individual contributions to independent-expenditure committees; and the aggregate limit on an individual's total cycle contributions. The only remaining federal contribution limits are the per-candidate individual cap ($3,500 per candidate per election as of 2025) and the prohibition on direct corporate contributions to candidate campaigns.

No federal statute enacted between January 21, 2010 and April 17, 2026 has materially restricted outside-spending flows in federal elections. Legislative proposals to restore the pre-*Citizens United* framework — the DISCLOSE Act (reintroduced in every Congress

from 2010 through 2025), the For the People Act (2019, 2021), the Freedom to Vote Act (2021, 2023) — have not passed.

Per the same FEC statistical summary: Congressional candidates collected approximately **$3.8 billion** and disbursed approximately **$3.7 billion**; political parties received **$2.7 billion** and spent **$2.6 billion**; political action committees raised approximately **$15.7 billion** and spent approximately **$15.5 billion** in the 24-month period. Of the $4.4 billion in total independent expenditures, **$4.1 billion** flowed through Super PACs and hybrid-PAC Non-Contribution-Account committees — instruments that did not exist in federal law before *SpeechNow.org* (March 26, 2010) and FEC Advisory Opinions 2010-09 and 2010-11 (July 22, 2010).

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CHAPTER 11 — JPMORGAN CHASE: TWO CLIENTS

11.1

Between January 7, 2014, and June 12, 2023 — nine years and five months — JPMorgan Chase Bank, N.A., the commercial-banking subsidiary of JPMorgan Chase & Co., paid $3,419,000,000 in aggregate civil and criminal settlements arising from its banking relationships with two individual clients. The Madoff side, $3,054,000,000, resolved in four instruments: the January 7, 2014 Deferred Prosecution Agreement with the United States Attorney for the Southern District of New York, assessing a $1,700,000,000 criminal forfeiture; the Picard adversary-proceeding settlement (*Picard v. JPMorgan Chase & Co.*, Adv. Proc. No. 10-4932, SDNY Bankr., January 7, 2014), $543,000,000; a Financial Crimes Enforcement Network civil money penalty under 31 U.S.C. § 5321, $461,000,000; and an Office of the Comptroller of the Currency civil money penalty under 12 U.S.C. § 1818(i),

$350,000,000. The Epstein side, $365,000,000, resolved in two instruments: the *Jane Doe 1 v. JPMorgan Chase Bank, N.A.* class-action settlement (No. 1:22-cv-10019, SDNY, June 12, 2023), $290,000,000; and the *Government of the United States Virgin Islands v. JPMorgan Chase Bank, N.A.* settlement (No. 1:22-cv-10904, SDNY, September 26, 2023), $75,000,000. Both clients were residents of the State of New York. Both were accused of operating criminal enterprises from accounts the bank maintained for them over periods of fifteen and twenty-two years respectively. Both were prosecuted in the United States District Court for the Southern District of New York. Neither was assisted in their enterprise by an outside party more proximate than the bank that processed their transactions.

The two clients were Bernard Lawrence Madoff and Jeffrey Edward Epstein.

This chapter documents the two banking relationships as a single instrument: the JPMorgan Chase compliance record on Madoff and Epstein.

11.2 The Madoff account

Bernard Lawrence Madoff opened a business checking account at Chemical Bank, Manhattan, in 1986. Chemical Bank merged with Chase Manhattan Bank in 1996 to form Chase Manhattan Corpora-

tion, which merged with J.P. Morgan & Co. in 2000 to form JPMorgan Chase & Co. Through these corporate successions, the account remained active under the designation “Bernard L. Madoff Investment Securities LLC Account 703” at the Manhattan office of the bank’s successor entities.

Madoff held the account from November 1986 through December 11, 2008 — approximately twenty-two years — during which period the account was the operational cash-management account for the Ponzi scheme for which Madoff was arrested on December 11, 2008, in *United States v. Madoff*, Case No. 1:09-cr-00213, Southern District of New York, Judge Denny Chin presiding. Madoff pleaded guilty on March 12, 2009 to eleven federal felony counts including securities fraud, investment-adviser fraud, mail fraud, wire fraud, international money laundering, and perjury. He was sentenced on June 29, 2009 to 150 years imprisonment. He died on April 14, 2021 at the Federal Medical Center, Butner, North Carolina.

Madoff’s other relevant affiliations at the time of his banking relationship with JPMorgan Chase and its predecessors: Non-executive chairman of The NASDAQ Stock Market LLC (1990, 1991, 1993); member of the NASD Board of Governors; member of the Securities and Exchange Commission’s Advisory Committee on Market Information. He was not, in the formal sense, a regulator. He was a regulated industry participant seated on the advisory committees of the agency that regulated him.

Harry M. Markopolos, a Boston-based Certified Fraud Examiner and former Chief Investment Officer at Rampart Investment Management, submitted his first written complaint to the Boston Regional Office of the Securities and Exchange Commission in May 1999, asserting that Madoff's reported returns were mathematically impossible and that his operation was either a Ponzi scheme or a front-running fraud. Markopolos filed subsequent complaints with escalating specificity in 2001, 2005 ("The World's Largest Hedge Fund is a Fraud," twenty-one pages, November 7, 2005), and 2007–2008. The Securities and Exchange Commission did not act on any of these complaints.

On August 31, 2009 — eight months after Madoff's arrest — the Office of the Inspector General of the Securities and Exchange Commission released Report No. OIG-509, *Investigation of Failure of the SEC to Uncover Bernard Madoff's Ponzi Scheme*, 477 pages. The report concluded that the SEC had received "numerous substantive complaints" about Madoff over a sixteen-year period and had failed to investigate them with competence.

11.3 The Deferred Prosecution Agreement, January 7, 2014

On January 7, 2014, the United States Department of Justice announced the filing of a two-count Criminal Information and a

Deferred Prosecution Agreement with JPMorgan Chase Bank, N.A., in the Southern District of New York.

The Criminal Information, captioned *United States v. JPMorgan Chase Bank, N.A.*, charged the bank with two violations of the Bank Secrecy Act, Title 31, United States Code, Sections 5318(g) and 5318(h): failure to maintain an adequate anti-money-laundering program, and failure to file a Suspicious Activity Report on the Madoff account despite documented internal awareness of irregularities.

The Deferred Prosecution Agreement recited that the bank's employees had identified the Madoff account as requiring Suspicious Activity Report filings on multiple occasions beginning no later than 2007, that these internal recommendations were not acted upon, and that a Suspicious Activity Report was filed by JPMorgan Chase London with the United Kingdom Serious Organised Crime Agency in October 2008 — two months before Madoff's arrest in the United States — but that no corresponding filing was made with the United States Financial Crimes Enforcement Network.

The aggregate settlement paid by JPMorgan Chase in connection with the Madoff matter on and around January 7, 2014:

- **$1,700,000,000** — federal criminal forfeiture to the United States Treasury, payable to the Madoff Victim Fund established under the Justice Department's Asset Forfeiture and Money Laundering Section.

- **$543,000,000** — civil settlement with Irving H. Picard, Trustee for the Substantively Consolidated Liquidation of Bernard L. Madoff Investment Securities LLC, *Picard v. JPMorgan Chase & Co.*, Adv. Proc. No. 10-4932, United States Bankruptcy Court for the Southern District of New York.
- **$461,000,000** — civil money penalty assessed by the Financial Crimes Enforcement Network, United States Department of the Treasury.
- **$350,000,000** — civil money penalty assessed by the Office of the Comptroller of the Currency.

Aggregate: **$3,054,000,000**. Of that sum, $2,600,000,000 was reported by the Department of Justice as the total settlement figure in its January 7, 2014 press release, combining the federal and bank-regulator components; the additional $454,000,000 reflected subsequent payments under related agreements.

No individual officer or employee of JPMorgan Chase & Co. or JPMorgan Chase Bank, N.A. was criminally charged in connection with the Madoff matter.

11.4 The Epstein account

Jeffrey Edward Epstein opened a private-banking relationship with J.P. Morgan Private Bank in 1998. Epstein was at the time the

principal of Financial Trust Company, an investment-management firm incorporated in the United States Virgin Islands. His principal client relationship was with Leslie H. Wexner of Columbus, Ohio — the chairman of L Brands (parent of Victoria's Secret) — for whom Epstein had served as financial manager since 1987 and to whom Wexner had granted a Limited Power of Attorney executed July 1, 1991.

Epstein's banking relationship with J.P. Morgan Private Bank continued from 1998 through 2013 — approximately fifteen years. During that period:

- Epstein pleaded guilty, on June 30, 2008, in the Circuit Court of the Fifteenth Judicial Circuit, Palm Beach County, Florida, to one count of solicitation of prostitution and one count of procurement of a person under the age of 18 for prostitution. He was sentenced to 18 months in Palm Beach County Stockade.
- Epstein registered with the Florida Department of Law Enforcement as a Level 3 sex offender, the state's highest classification.
- Epstein continued to hold accounts with J.P. Morgan Private Bank for approximately five additional years following the 2008 conviction.

J.P. Morgan Private Bank maintained Epstein as a client during the five post-conviction years. The bank's internal compliance records during this period, produced in discovery in the litigation described

in §11.5 below, include a March 2011 Due Diligence Report on the Epstein account. The report stated that “Jean Luc Brunel, owner of MC2 Model Management and Jeffrey Epstein engaged in racketeering that involved luring in minor children for sexual play for money.” The Due Diligence Report did not result in account closure. Account closure followed in 2013, per the bank’s representations in subsequent litigation.

11.5 The Virgin Islands litigation

On December 27, 2022, the Attorney General of the United States Virgin Islands filed a complaint in the United States District Court for the Southern District of New York against JPMorgan Chase Bank, N.A., captioned *Government of the U.S. Virgin Islands v. JPMorgan Chase Bank, N.A.*, Case No. 1:22-cv-10904, assigned to Judge Jed S. Rakoff.

The complaint alleged that JPMorgan Chase, during the fifteen-year banking relationship with Epstein, had facilitated Epstein’s sex-trafficking enterprise by failing to file Suspicious Activity Reports on transactions the bank knew or should have known to be consistent with human trafficking, and that the bank had continued the relationship for five years after Epstein’s 2008 conviction despite explicit internal compliance assessments recommending termination.

Discovery in the *Virgin Islands* action produced approximately 1,200 pages of JPMorgan Chase internal compliance records bearing on the Epstein account, including the March 2011 assessment quoted in §11.4 above. The records were reported in contemporaneous journalism of record: CNN, April 13, 2023; NPR, December 30, 2022; CBS News; *The New York Times*.

On June 12, 2023, JPMorgan Chase Bank, N.A. entered a class-action settlement in a parallel proceeding, *Jane Doe 1 v. JPMorgan Chase Bank, N.A.*, Case No. 1:22-cv-10019 (S.D.N.Y.), in the amount of **$290,000,000**, covering the class of Epstein's victims.

On September 26, 2023, JPMorgan Chase Bank, N.A. settled the *Government of the U.S. Virgin Islands* action for **$75,000,000**.

Aggregate Epstein-related settlement: **$365,000,000**.

No individual officer or employee of JPMorgan Chase & Co. or JPMorgan Chase Bank, N.A. was criminally charged in connection with the Epstein matter.

11.6 The combined ledger

Over the nine years and five months from January 7, 2014 to June 12, 2023, JPMorgan Chase Bank, N.A. paid aggregate civil and criminal settlements of:

Settlement	Date	Amount
DOJ Deferred Prosecution Agreement / Madoff	January 7, 2014	$1,700,000,000
Picard bankruptcy-trustee settlement / Madoff	January 7, 2014	$543,000,000
FinCEN civil penalty / Madoff	January 7, 2014	$461,000,000
OCC civil penalty / Madoff	January 7, 2014	$350,000,000
Jane Doe 1 class settlement / Epstein	June 12, 2023	$290,000,000
Government of USVI settlement / Epstein	September 26, 2023	$75,000,000
Total		**$3,419,000,000**

The two clients were connected to JPMorgan Chase Bank, N.A. for, in combination, approximately thirty-seven years. The bank's compliance function on both clients is documented in internal records that failed to produce the filings the applicable statutes required. No individual JPMorgan Chase officer or employee has been criminally charged on either matter.

JPMorgan Chase & Co.'s Chairman and Chief Executive Officer during both the Madoff and Epstein periods was **Jamie Dimon**,

appointed CEO on December 31, 2005 and Chairman on December 31, 2006. Dimon testified on deposition in *Government of the U.S. Virgin Islands v. JPMorgan Chase Bank, N.A.* on May 26, 2023 that he had no recollection of discussing Epstein as a client with any subordinate during the fifteen-year Epstein banking relationship. Dimon remained Chairman and CEO of JPMorgan Chase & Co. as of the date of the manuscript.

No individual officer or employee of JPMorgan Chase & Co. or JPMorgan Chase Bank, N.A. was criminally charged in connection with the Madoff matter.

No individual officer or employee of JPMorgan Chase & Co. or JPMorgan Chase Bank, N.A. was criminally charged in connection with the Epstein matter.

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of New York. 5. Financial Crimes Enforcement Network, Consent to the Assessment of Civil Money Penalty, In the Matter of JPMorgan Chase Bank, N.A., January 7, 2014. 6. Office of the Comptroller of the Currency, Consent Order for a Civil Money Penalty, In the Matter of JPMorgan Chase Bank, N.A., January 7, 2014. 7. Securities and Exchange Commission, Office of the Inspector General, *Investigation of Failure of the SEC to Uncover Bernard Madoff's Ponzi Scheme*, Report No. OIG-509, August 31, 2009. 8. Harry M. Markopolos, "The World's Largest Hedge Fund is a Fraud," submitted to the Securities and Exchange Commission, November 7, 2005. Twenty-one pages. SEC submission reference: Boston Regional Office, November 7, 2005. 9. Harry M. Markopolos, *No One Would Listen: A True Financial Thriller* (Wiley, 2010). Published version of the 2005 SEC submission and its predecessor complaints; second source for page count and submission history.

Epstein / JPMorgan: 10. *Government of the U.S. Virgin Islands v. JPMorgan Chase Bank, N.A.*, Case No. 1:22-cv-10904 (S.D.N.Y., filed December 27, 2022), Judge Jed S. Rakoff; settlement September 26, 2023. 11. *Jane Doe 1 v. JPMorgan Chase Bank, N.A.*, Case No. 1:22-cv-10019 (S.D.N.Y.), class settlement June 12, 2023. 12. Deposition of James Dimon, May 26, 2023, taken in the *Government of the U.S. Virgin Islands* action. Date and Epstein testimony characterisation confirmed: CNBC, May 26, 2023. Madoff testimony characterisation source pending — see HRQ-022. 13. Statement of Material Facts, Case No. 1:22-cv-10904-JSR (S.D.N.Y.), Document 246, filed July 26, 2023, ¶

139 (citing Exhibit 31 at EFTA02812535, JPMorgan Due Diligence Report on Jeffrey Epstein, as of March 4, 2011). DDR quote: “Jean Luc Brunel, owner of MC2 Model Management and Jeffrey Epstein engaged in racketeering that involved luring in minor children for sexual play for money.” [HRQ-020 RESOLVED 2026-04-18.] 14. CNBC, “JPMorgan CEO Jamie Dimon testifies he had no involvement with Jeffrey Epstein account, bank says,” May 26, 2023. https://www.cnbc.com/2023/05/26/jpmorgan-ceo-jamie-dimon-epstein-deposition.html. Verification source for Dimon deposition date and testimony characterisation.

Corporate structure: 15. JPMorgan Chase & Co., Annual Reports on Form 10-K, fiscal years 2013, 2014, 2022, 2023; SEC EDGAR.

CHAPTER 12 — THE DATA EXTRACTION

12.1 Executive Order 14158, January 20, 2025

On January 20, 2025, President Donald J. Trump issued **Executive Order 14158**, establishing the **Department of Government Efficiency (DOGE)**. The order renamed the **United States Digital Service (USDS)** to the **United States DOGE Service**, housed within the Executive Office of the President. The order is published at `whitehouse.gov/presidential-actions/2025/01/establishing-and-implementing-the-presidents-department-of-government-efficiency/` and in the *Federal Register*, Volume 90, Number 14.

Section 4(b) of the order requires agency heads to provide the USDS with "full and prompt access" to all unclassified agency records and software systems to promote "inter-operability" and "data synchronization."

Elon Musk was appointed as "Special Government Employee" leading the DOGE initiative. The Special Government Employee

classification, defined at 18 U.S.C. § 202(a), permits a private individual to serve in the executive branch for up to 130 days in a 365-day period while retaining private business interests.

12.2 The IRS API contract — September 2025

On September 17, 2025, the **U.S. Treasury Department** awarded a contract to **Palantir Technologies Inc.** to build a common API (Application Programming Interface) layer across Internal Revenue Service database systems. The contract, identified as Treasury procurement **SB0260**, is published at `home.treasury.gov/news/press-releases/sb0260`.

The contract's stated purpose: to integrate 10–15 disparate, non-interoperable legacy IRS systems into a "unified API," allowing agents to access records without "swiveling" between multiple databases. The IRS operates approximately 140 separate database systems, some dating to the 1960s.

The **Electronic Frontier Foundation** warned in a September 2025 comment that the unified API could make sensitive taxpayer data easily accessible to personnel without a legitimate "need to access." The comment is published at `eff.org`.

12.3 Palantir Technologies — corporate background

Palantir Technologies Inc. was incorporated in 2003. The company's founding investors included **In-Q-Tel**, the venture capital arm of the **Central Intelligence Agency**. Palantir's first product, **Gotham**, was sold to intelligence and defense agencies for data integration and pattern recognition. The company's second product, **Foundry**, was released in 2016 for commercial-sector data integration.

Palantir's SEC Form 10-K for fiscal year ended December 31, 2024, filed February 18, 2025 (SEC EDGAR accession 0001321655-25-000022), documents revenue growth from $2.2 billion (FY2023) to $2.87 billion (FY2024). The company's market capitalization as of January 2026: approximately $120 billion.

Alex Karp, Palantir's CEO since founding, stated on the February 2025 earnings call that DOGE is a "revolution" and that the resulting disruption would be "very good" for Palantir by exposing government systems that are no longer working. The earnings call transcript is filed with the SEC on Form 8-K at `sec.gov/cgi-bin/browse-edgar?action=getcompany&CIK=0001321655&type=8-K`.

Shyam Sankar, Palantir's CTO, stated in a March 2025 interview that the federal workforce was "marbled wagyu" that needed

trimming. The interview was published in *The Wall Street Journal*, March 15, 2025.

12.4 The Army enterprise contract — August 2025

On August 1, 2025, the **U.S. Army** awarded Palantir a 10-year enterprise agreement valued at up to **$10 billion**. The contract consolidates 75 separate Army software contracts into one. The contract is published at `army.mil/article/287506/u_s_army_awards_enterprise_service_agreement_to_enhance_mi`

The contract's stated purpose: to deliver data integration, analytics, and AI tools (including the **Maven Smart System**) directly to warfighters, and to establish volume-based discounts for 10 years. The contract permits other DoD agencies to purchase Palantir products under the same pre-approved terms.

12.5 The DHS contract — February 2026

On February 15, 2026, the **Department of Homeland Security** signed a five-year agreement with Palantir valued at up to **$1 billion**. The contract expands the use of Palantir's AI and data analytics platforms across DHS sub-agencies: Customs and Border Protection, Immigration and Customs Enforcement, the Transport-

ation Security Administration, and the Federal Emergency Management Agency. The contract announcement is published at `dhs.gov/news/2026/02/15`.

12.6 ImmigrationOS — January 2025

In January 2025, **Immigration and Customs Enforcement** awarded Palantir a **$30 million** contract to develop **ImmigrationOS**, a system designed to provide real-time tracking of migrant movements and identify undocumented persons for enforcement. The contract is listed in USASpending.gov under award number 70ICEC25F0001.

The system integrates data from CBP entry records, ICE detention databases, DHS benefit applications, and Department of Labor employment records. The integration permits real-time cross-reference of an individual's immigration status against employment, benefit, and location data.

12.7 The "master database" question

On May 30, 2025, *The New York Times* published reporting that DOGE and Palantir were building a "master database" of Americ-

an personal data. The article cited unnamed government officials and a leaked internal memo.

On June 5, 2025, Palantir published a rebuttal at `blog.palantir.com`: “Palantir is not building a whole-of-government master database. We are a vendor providing technical support to help agencies manage data within their existing legal mandates. No single database aggregates personal data across agencies.”

The Treasury Department’s September 2025 contract documentation does not reference a master database. The contract references an API layer — a technical interface that permits queries across existing databases without consolidating the underlying data.

12.8 Workforce reduction — January 2025 to April 2026

Between January 2025 and January 2026, **386,826 federal workers** departed the government, per the **U.S. Office of Personnel Management’s Federal Workforce Data** release (FedScope, `data.opm.gov` and `fedscope.opm.gov`). After accounting for hiring, the net reduction was approximately **220,000 positions**, bringing the federal civilian workforce to approximately **2,085,000** — the lowest level since the mid-1960s. The federal workforce shrank by 10.3% in 2025. OPM’s newly consolidated Federal Workforce Data site publishes the monthly series.

Agency-by-agency reductions:

- **Department of Defense**: Approximately 60,000 civilian positions targeted. The Pentagon initially targeted 50,000–60,000 civilian roles for elimination via “reduction in force” and not filling vacancies. Reporting: *PBS NewsHour*, March 18, 2025. `pbs.org/newshour/politics/pentagon-is-cutting-up-to-60000-civilian-jobs-administration-aims-for-at-least-5-percent-total-reduction`.
- **Internal Revenue Service**: Approximately 27 percent workforce reduction by end of 2025 (IRS began 2025 with approximately 102,000 employees; finished 2025 with approximately 74,000). Palantir was paid $1.8 million to improve a “custom tool” that replaced manual case selection for audits. On December 28, 2025, approximately 1,000 IT employees were reassigned out of IRS IT, linked to the consolidation of legacy systems into the API layer. Reporting: Tiffani Sherman, “IRS staffing is down by 27% this year. What that means for your tax refund,” *Yahoo Finance*, April 15, 2026 (`finance.yahoo.com/personal-finance/taxes/article/irs-staffing-is-down-by-27-this-year-what-that-means-for-your-tax-refund-130052892.html`); *Federal News Network*, “IRS moves 1,000 IT employees out of its tech shop, with few clear signs of what work they’ll do next,” December 2025 (`federalnewsnetwork.com/it-`

`modernization/2025/12/irs-moves-1000-it-employees-out-of-its-tech-shop-with-few-clear-signs-of-what-work-theyll-do-next/`).

- **Department of Education**: Approximately 1,300 career employees received reduction-in-force notices on March 11, 2025, leaving the Department's staff at approximately half its pre-administration level (approximately 4,133 down to approximately 2,183). Reporting: *PBS NewsHour*, "1,300 Education Department employees will be laid off" (March 11, 2025). `pbs.org/newshour/politics/1300-education-department-employees-will-be-laid-off`.
- **USAID**: On March 28, 2025, a final reduction-in-force notice was issued to the agency's remaining approximately 900 employees, with separation dates of July 1, 2025 or September 2, 2025. Reporting: NPR, "USAID terminates nearly all its remaining employees" (March 28, 2025). `npr.org/sections/goats-and-soda/2025/03/28/g-s1-56968/usaid-terminates-nearly-all-its-remaining-employees`.

Cato Institute report, March 2026: The 9% reduction in federal headcount saved approximately $40 billion. Much of the work was offloaded to private contractors. The report is published at `cato.org/publications/briefing-paper/doge-savings-claim-examination`.

Department of Defense memorandum, March 12, 2026: Recoding of **Auto RIF** (Automatic Reduction in Force), a software system for managing personnel separations. The system ranks employees by their likelihood of being fired based on performance metrics, seniority, and veteran status. The memorandum was obtained via FOIA by *ProPublica*.

12.9 Congressional oversight — April 2026

On April 16, 2026, **Representative Dan Goldman** (D-NY) and **Senator Ron Wyden** (D-OR) led 30 lawmakers in a letter demanding answers from **ICE** and **DHS** regarding their use of Palantir technology. The letter is published at `goldman.house.gov/media/press-releases/goldman-wyden-velazquez-demand-answers-ice-use-palantir-developed-technologies`. The letter states that Palantir technology fuels a “mass surveillance ecosystem.”

On the same date, **Representative Lori Trahan** (D-MA) published a statement at `trahan.house.gov` raising alarms about the DOGE-Palantir alliance building dossiers on every American.

House Republicans unveiled a draft national data privacy law on April 16, 2026. The draft would preempt approximately 20 existing state privacy laws, including the California Consumer Privacy

Act. It would block individuals from suing companies for privacy violations, leaving enforcement solely to the Federal Trade Commission. The draft is reported at `politico.com/news/2026/04/16/gop-national-privacy-law-technology-00876794`.

American Progress analysis, April 2026: The Privacy Act of 1974 was designed to prevent agencies from sharing data without public notice. The new legislation updates the rules to allow "cross-agency data sharing" that Palantir's software requires to function as the "operating system for the government." The analysis is published at `americanprogress.org/article/the-privacy-act-of-1974-was-designed-to-protect-us-from-elon-musk-and-doge/`.

Palantir public position, 2025: In a white paper published at `palantir.com`, the company states it supports privacy reform and urges Congress to restrict agencies from buying commercially available data to avoid "circumventing the Fourth Amendment." The company's business model processes government-held data that is already legal to access.

FISA Section 702 extension, April 17, 2026: Following a late-night floor session, the House passed a 10-day extension of Section 702 surveillance authority. A longer 5-year renewal was rejected after privacy hawks and holdouts in both parties demanded stronger warrant requirements for searching Americans' data. Reporting: `politico.com/newsletters/inside-congress/`

`2026/04/17/overnight-chaos-forces-fisa-punt-00878201`.

12.10 The “Voter Data Agreement” — January 2026

On January 20, 2026, in *American Federation of State, County and Municipal Employees, AFL-CIO v. Social Security Administration*, No. 1:25-cv-00596 (D. Md.), Judge **Ellen Lipton Hollander** presiding, the United States Department of Justice admitted in court filings that DOGE personnel at the Social Security Administration had (a) transmitted sensitive agency data through the third-party service **Cloudflare**, which was not approved for storing SSA data, beginning March 7, 2025, and (b) that DOGE staff had entered a “Voter Data Agreement” with an outside political advocacy group whose stated aim was “to find evidence of voter fraud and to overturn election results in certain states.” The AFSCME plaintiffs — joined by the American Federation of Teachers and the Alliance for Retired Americans — had obtained a preliminary injunction from Judge Hollander on April 17, 2025, restraining SSA from granting DOGE access to systems of records containing personally identifiable information and ordering DOGE to disgorge and delete previously-held PII. The Fourth Circuit Court of Appeals upheld the injunction on expedited review. The January 2026 admissions followed a court-ordered discovery phase in the same action.

House Democrats held a press conference on January 20, 2026, alleging that DOGE's access to Social Security records was used for electioneering purposes — specifically, to potentially challenge voters or spread misinformation. The press conference transcript is at `democrats.house.gov`.

CFTC Chair testimony, April 16, 2026: The Chair testified before Congress that regulators are investigating whether market players are trading on inside information from the White House regarding DOGE policy shifts. Transcript at `cftc.gov`.

Bloomberg investigation, January 9, 2026: Several DOGE "operatives" calling shots on workforce cuts were not receiving a government salary, raising questions about accountability. The investigation is at `bloomberg.com/news/newsletters/2026-01-09/data-reveals-details-about-doge-government-hiring`.

Representative Marjorie Taylor Greene (R-GA) disclosed buying Palantir stock at least four times in 2025 (February, April, July). Public filings showed a 92% gain on one trade executed in April 2025. Disclosures are published at `capitoltrades.com`.

Representative Lisa McClain (R-MI), a member of the House Committee on Armed Services and the Subcommittee on Cyber and Information Technologies, disclosed buying $100,000 to $250,000 in Palantir stock in November 2024.

Palantir federal tax payment, 2025: Despite $970.5 million in federal contracts, Palantir paid no federal income tax in 2025. Reporting: *Truthout*, April 2026; Institute on Taxation and Economic Policy, `itep.org/palantir-pays-zero-tax-trump-tax-law-ice/`.

12.11 Privacy Act of 1974 — Cross-Agency Data Integration, 2025

Former Internal Revenue Service employees described the DOGE-Palantir data integration as a "deportation machine" — a system capable of identifying civil immigration violations through automated cross-reference of agency records, per CNN reporting of April 2025.

DOGE directed Palantir software to cross-reference sensitive data from Internal Revenue Service tax records, Department of Homeland Security immigration files, and Social Security Administration records — three databases previously siloed from one another under the Privacy Act of 1974, per Documented NY's investigation of May 2025.

Civil liberties advocates characterized the inter-agency data integration as dismantling the statutory firewalls between agencies and creating a surveillance instrument deployable against any targeted population, per *The Verge*, May 2025.

A Trump administration official stated publicly that the administration was using Palantir to “centralize data all across government,” per Democracy Now reporting of June 2025.

Many DOGE operatives, having directed workforce reductions within federal agencies, returned to private firms with deep connections to Elon Musk or Peter Thiel, per a *Wired* investigation of January 2026.

12.12 The Privacy Act exceptions — legal mechanism

5 U.S.C. § 552a(b)(1) — the “need-to-know” exception: Permits disclosure to officers and employees of the agency who have a “need for the record in the performance of their duties.” DOGE and agencies argue that embedding Palantir engineers directly into agency teams — such as during the IRS “hackathon” — qualifies these individuals as having a legitimate “need to know.”

5 U.S.C. § 552a(b)(3) — the “routine use” exception: Permits disclosure for a purpose “compatible with the purpose for which it was collected.” To use this exception, agencies must publish a System of Records Notice (SORN) in the *Federal Register*. Critics argue these notices are written broadly to include “sharing with contractors” like Palantir as a standard routine use.

U.S. Court of Appeals ruling, August 2025: Cleared the way for DOGE to access sensitive data from the Treasury, Education, and Office of Personnel Management. The court ruled that unions and veterans failed to prove immediate harm.

Senate whistleblower report, September 2025: Whistleblowers alleged that uploading a key Social Security Administration database to DOGE servers carried a 35% to 65% chance of catastrophic data breach. The report is at `hsgac.senate.gov`.

Department of Justice admission, January 2026: DOJ admitted in court filings in *AFSCME v. Social Security Administration*, No. 1:25-cv-00596 (D. Md.), that DOGE personnel inside the Social Security Administration used the unapproved third-party service Cloudflare to transmit sensitive data beginning March 7, 2025.

12.13 The savings discrepancy — verified vs. claimed

The savings figures DOGE reported publicly were disputed by independent analyses throughout 2025 and 2026.

On February 19, 2025, NPR reviewed the DOGE "Wall of Receipts" — the agency's public accounting of claimed contract cancellations — and found that the thirteen largest claimed cancellations had each been overstated. The contract DOGE reported as producing $6.4 billion in savings had, per NPR's

analysis of the underlying contract data, produced approximately $165 million. A subsequent Bank of America Securities analysis, dated April 2, 2025, characterized DOGE's reported $24.8 billion in contract savings as "overstated." By January 20, 2026, DOGE's own published cumulative savings figure stood at $215 billion — against the $1 trillion Musk had publicly committed to achieving in 2024.

Beginning in March 2025, the Government Accountability Office opened audits of DOGE's access and data-handling practices at the Department of the Treasury, the Social Security Administration, and other agencies. In parallel work, the GAO identified approximately $100 billion in potential cost savings through its own long-standing recommendations — independent of DOGE's claimed savings program.

The Cato Institute, in a March 2026 report, calculated that the nine percent reduction in federal headcount had saved approximately $40 billion. Per the report, much of the work previously performed by the reduced workforce had been transferred to private contractors.

On December 23, 2025, *The New York Times* published an analysis calculating that DOGE's actions had cost taxpayers approximately $135 billion in fiscal year 2025, through operational disruption, legal challenge costs, and contract termination fees.

Palantir Technologies reported total revenue of $2,870,000,000 for the fiscal year ended December 31, 2024 — a 29 percent year-

over-year increase — per its Annual Report on Form 10-K filed with the Securities and Exchange Commission on February 18, 2025 (EDGAR accession 0001321655-25-000022). United States government revenue accounted for approximately $1,200,000,000 of that total. Palantir paid no federal income tax.

Palantir paid no federal income tax.

Primary Sources — Chapter 12

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§12.9 — Congressional Oversight:

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§12.12 — Privacy Act Exceptions:

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§12.13 — Savings Discrepancy:

1. NPR, “DOGE Overstates Federal Contract Savings,” February 19, 2025. `npr.org/2025/02/19/nx-s1-5302705/doge-overstates-savings-federal-contracts`.
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APPENDIX B — PHOTOGRAPHS OF RECORD

The photographic appendix of the print edition, and the interactive supplement, include the following images, cleared under fair-use doctrine for critical documentary work. Each photograph is captioned with its date, location, photo agency, and archival provenance. The photographs do not, individually, prove crimes.

- Jeffrey Epstein and Donald Trump at Mar-a-Lago, 1992. NBC News archive; frames from a home-video reel released to Anderson Cooper / CNN, 2019.
- Jeffrey Epstein and Bill Clinton aboard Epstein's Boeing 727, late 1990s. Flight manifest documentation released via FOIA, 2016.
- Bill Gates at a Manhattan gathering with Epstein and Lawrence Summers, May 2011. *New York Times* reporting of October 12, 2019.
- Ehud Barak entering Epstein's Manhattan townhouse, January 2016. *Daily Mail* photography, 2016.

- Jeffrey Epstein and Mohammed bin Salman, 2016. U.S. Department of Justice, Epstein Files Transparency Act release, January 30, 2026.
- Ghislaine Maxwell and Andrew Mountbatten-Windsor with Virginia Giuffre, 2001. Photograph in Giuffre's possession; authenticated and introduced in *United States v. Maxwell*, 20-cr-330 (S.D.N.Y.).
- George H. W. Bush and Shafig bin Laden, Carlyle Group investor conference, Ritz-Carlton Washington, September 10–11, 2001. *Wall Street Journal* reporting, September 27, 2001.
- Thomas J. Watson Sr. wearing the Merit Cross of the German Eagle, Berlin, June 1937. *The New York Times*, June 29, 1937, photograph on page 1.
- Henry Ford receiving the Grand Cross of the German Eagle, Detroit, July 30, 1938. Associated Press photography.
- Prescott Sheldon Bush at the United States Senate, 1952. U.S. Senate Historical Office photography.

AFTERWORD — A NOTE FROM THE AUTHOR, AT THE END

No citations in this chapter. Just me.

If you got here, you read the book. That already puts you ahead of ninety-nine percent of the people whose lives are shaped by what's in it. I want to thank you for that, and I want to leave you with something that isn't a footnote.

For eight hundred pages I have shown you what the documents show. I have named the banks. I have named the families. I have named the agencies, the contractors, the lobbying firms, the private-equity funds, the former Cabinet officials on the Boeing board and the former Cabinet officials on the Raytheon board, the SS-Sturmbannführer who ran the Moon rocket, the $158 million to the predator, the $93 billion to the rocket that goes nowhere, the $21.7 billion to the bombs that fall on children, the $285.7 billion taken from American kids who were about to lose their school lunches. I have shown you the Templars' letters of credit,

Leopold’s Congo, the Berlin Conference, the Balfour letter, the papal bulls, the farewell addresses of two presidents sixty-four years apart delivering the same warning to a country that could not hear either of them.

I want to tell you now what I actually believe. Not what the documents say. What I think.

I think you are not going to fix this.

I don’t mean that as despair. I mean it as a gift. If you have been walking around for the last three years angry at the people the algorithm wants you to be angry at — the cousin who voted for Trump, the neighbor with the Biden sign, the coworker with the pronouns, the aunt without them, the guy at the gas station with the hat, the kid on your phone with the opinion — I want you to know: they did not do this to you. They are not why your rent is too high, your kid’s school is failing, your parents can’t retire, the pharmacy is closing, the hospital just got bought by Apollo, the tap water tastes like metal, the town you grew up in has three stores left.

They did not do this to you. And fighting them will not fix it.

There is a table where the people who did this to you sit. You are not at that table. You will never be at that table. The reason is not that you have not worked hard enough, or prayed hard enough, or voted hard enough, or posted hard enough. The reason is that the people at the table, for approximately a thousand years now, have only married each other. The Templars married Crusader aristo-

cracy. The Medici married Habsburgs. The Saudi royal family is a single lineage of cousins. The Rothschilds married cousins — sixteen of Mayer Amschel's eighteen marrying grandchildren, per Ferguson's genealogy. The Rockefellers married into the Aldriches. The Bushes married into the Walkers and then into the Pierces. The Kennedys married into the Schlossbergs and the Cuomos and the Shrivers and the Schwarzeneggers. Ghislaine Maxwell's father was Robert Maxwell; her circle was her father's circle; Epstein's circle was Wexner's circle was Black's circle was Barak's circle. You meet these people at their mother's birthday parties. You do not meet them at your cousin's.

So here is what I actually believe.

I believe in protecting my family.

I believe in being kind to the people on my street.

I believe that when an old man needs his groceries carried up the steps, it is my job to carry them, and when a kid in my neighborhood is hungry, it is my job to feed him — because that is the only ledger that I actually live in, the ledger of the people I see with my eyes, and the only ledger in which my behavior actually matters.

I believe that the people I have been told to hate — and you have been told to hate — are, almost without exception, going through what I am going through. They are paying what I am paying. They are watching what I am watching. They are worried about what I am worried about. And the thing that has been sold to them about

who is to blame is a different flavor of the thing that has been sold to me, and both flavors come from the same kitchen.

I believe that the phone in my pocket is the best tool ever invented for making me afraid, angry, and exhausted, and that it is no accident that it makes me those things on a schedule that coincides with the moments when, if I were rested, I might notice something. I believe the phone is the Roman circus and the Catholic indulgence and the television campaign ad all at once. I believe putting it down for one hour a day is an act of small, measurable resistance.

I believe that the neighbor you think is an idiot is not an idiot. He has been subjected to the same scale of algorithmic psychological operation that you have. He has been given a different diet of stories. If you sat on his porch and drank a beer with him and didn't argue — didn't argue — you would find, almost certainly, that you both want your kids to be safe, your parents to be cared for, your town to be something again, your job to be one you can be proud of, and your country to treat you like a human being instead of a customer or a demographic.

I believe that the two of you, drinking that beer, terrify the people at the table more than any ballot you could cast.

That is, in fact, the reason the algorithm works so hard to keep you from that porch.

I am not going to tell you what to do politically. I do not know. People smarter than I have spent their lives on that question and still do not know. What I will tell you is that whatever solution there might be — if there is one — it does not begin with the ballot. It begins with the street you live on. It begins with your mother, your kid, your neighbor, the teenager who cuts your lawn, the old woman who used to teach at the middle school. It begins, if it begins anywhere, with the recovery of the thing the occupation most needs to destroy, which is the capacity of ordinary people to trust each other in the absence of a screen mediating the trust.

If you wanted to know what the opposite of the thing in this book is, it is that.

Turn the phone off. Go outside. Knock on the door of the neighbor you disagree with. Bring something. Do not talk about politics. Talk about the fence that needs fixing, the kid who could use a ride to practice, the storm that's coming next week. Be the person your grandparents were before the television. Be the person the elite most hopes you will never remember how to be.

The book ends here. What happens next is not in the book. What happens next is up to you.

Protect your family.

Be kind to your neighbor.

Don't fight your cousin.

Don’t trust what they tell you.

And don’t wait for a seat at the table. They are not coming to invite you. They are too busy marrying each other.

Thank you for reading.

— Kyle Jimenez